COMMONWEALTH OF AUSTRALIA

Proof Committee Hansard

JOINT STANDING COMMITTEE ON ELECTORAL MATTERS

Inquiry into the 2025 federal election

(Public)

FRIDAY, 7 NOVEMBER 2025

CANBERRA

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JOINT STANDING COMMITTEE ON ELECTORAL MATTERS

Friday, 7 November 2025

Members in attendance: Senators Hodgins-May, McKenzie and Mulholland and Mr Burnell, Ms Campbell, Mr Laxale, Mr Neumann and Dr Ryan

Terms of Reference for the Inquiry:

That the Joint Standing Committee on Electoral Matters inquire into and report on all aspects of the conduct of the 2025 federal election and related matters, including consideration of the following:

- assessment and review of the purported increase in incidents of aggressive conduct, deliberate obstruction, and intimidating behaviour towards voters, political participants, volunteers, and Australian Electoral Commission (AEC) officials;
- potential reform of safety and security arrangements, including consideration of the powers, processes, and capacity of the AEC to manage and address increasingly threatening or disruptive behaviour;
- the suitability and potential reform of measures to ensure universal voter access, including polling booth availability and location, early voting, remote polling, and postal voting arrangements; and
- the suitability of the current authorisation framework and requirements, having regard to the evolution of communication methods and technology.

The Special Minister of State has also asked the Committee to consider the interaction with the following:

- the implementation and operation of the electoral reform passed by the 47th Parliament, particularly regarding the use of money or capital in the most recent election;
- reforms to address the ongoing threats of interference in our electoral system, both foreign and domestic; and
- the composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives relative to the growth in population and the electorate.

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Committee met at 09:02

CHAIR (Mr Laxale): Good morning, everyone. I declare open this public hearing of the Joint Standing Committee on Electoral Matters for the inquiry into the 2025 election. In accordance with the committee's resolution of 4 August 2025, this hearing will be broadcast on the parliament's website and the proof and official transcripts of proceedings will be published on the parliament's website. I remind members of the media who may be present or listening on the web of the need to fairly and accurately report proceedings of the committee.

Before we call a witness, can I just get a resolution, Senator Mulholland, that we accept submissions 118 and 119 and authorise them for publication. There being no objection, I declare it carried.

I now welcome Dr Kevin Bonham to give evidence today. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. Dr Bonham, I now invite you to make a brief opening statement before we proceed to discussion.

Dr Bonham: My apologies for not having yet sent in a written submission. I had very little time following the back-to-back Tasmanian and federal elections, and I've been getting back to other work. It is coming.

There are a number of issues I want to talk about today, including some of the items of reference. I have a couple of general, overview comments about the election. The House of Representatives election was unexpected lopsided in comparison to the lead-up polling. That has resulted in a fair degree of unhinging of the level of misinformation about the result. Post the result, it has been several times what it was in 2022, particularly people believing the 'fact' that Labor's win of so many seats off a modest primary vote was caused by preferential voting. It was actually mostly not caused by preferential voting. Labor led nationwide on primaries, and lead in 86 seats as a result of having a better distributed primary vote. I have an article on my website about that. I am seeing a lot of people calling for first past the post and so on. I think it's really unfortunate that people don't understand our democratic traditions.

The Senate results continue to discredit all the arguments that were made against Senate reform in 2016. We had low exhaust, we had minor parties winning, we had the government not being blocked three-three in the states. Admittedly, people who opposed Senate reform probably weren't expecting that we would have elections as lopsided as this.

In terms of the general information environment, one matter that is significant is artificial intelligence. I'm constantly noticing AI programs available online making false claims about Australian elections, including false claims about the voting process. I'm particularly concerned that Grok, the native AI on X, formerly Twitter, continually makes false claims about our voting processes. For instance, on four separate occasions I have had run-ins with it where it has claimed that your vote in the House of Representatives can go to the person who you put last. Actually, your preference can never reach that person. It does concern me that we have people treating these AI programs as oracles when they are actually just language engines and are unreliable. These programs are basically breaching the electoral act by making statements that can mislead an elector in relation to the casting of their vote. I'm wondering if some restrictions will be imposed on them during election periods if they do not improve.

In the previous inquiry, I stated my support for expanding the parliament. That was on the basis of a terms of reference dealing with one vote, one value, but I did also say that I supported it anyway. I have done some modelling on impacts on the Senate that will be coming in my written submission, and I can talk about that a bit more if desired. The impacts aren't massive, but it is interesting that when you go up to eight senators per state, some of the Senate states that are currently four-two left-right splits become four-four. One Nation does particularly well on current voting levels. For instance, if you'd had eight senators per state at each of the last two elections, One Nation would have 10 Senate seats out of 100. We're getting to a stage where something like that could start to happen within our current system, where you quite frequently get two-two-one-one results. We saw a couple of them this time.

I do not support fixed terms at all. I think that fixed terms only achieve the goal that they are meant to achieve if they are truly fixed, but there are situations where prime ministers should be able to call elections that fixed terms might prevent. I think that the electorate are wary of early elections and will punish leaders who call early elections unnecessarily. I think the early election problem is reducing anyway. Since 1998, we've had a sequence where all of the elections have been held in three-year calendar-year cycles. There was only one significant early

election, but it wasn't very early. I really don't think that early elections are that much of a problem, and there are a lot of issues that can happen with fixed terms, particularly if you get a finely balanced parliament. I've dealt with this more often in the Tasmanian situation. We commonly get hung parliaments and one person defects and it affects the balance of power in the chamber and the leader could be trapped with that and unable to seek a proper democratic mandate.

With regard to the proposed increase to four-year terms, I have strong objections to eight-year terms for senators. I think eight years is too long. A senator elected for eight years is effectively not accountable. These days for a lot of people that's sufficient time to be an entire parliamentary career. Careers are not for life these days. If someone defects two months into an eight-year term, the country is stuck with them as a senator for eight years, with no mandate. So I don't support anything that would bring in eight-year Senate terms.

The other solutions that would allow for a four-year Reps term also have issues. All-in all-out every four years would change the balance of power between the houses quite a bit. You'd probably get more frequent double dissolutions because there would be less of a disincentive to have them if you still had that system. You'd probably get more conflict between the houses. At this stage I'm not convinced there's a workable four-year term model. I see the disadvantages with having elections every three years, but I haven't found a convincing solution. I'm open to one, but not if it includes eight-year Senate terms. I'll leave it there for now.

CHAIR: Thank you, Dr Bonham. We've got a few members here, so I'll start with a few questions and then we'll move on. We've got until 9.45 am, so if you're happy to answer some questions—

Dr Bonham: Yes.

CHAIR: I'll kick off. I've read your blog post about parliament being expanded and it not being a partisan fix. It's a good read. For the benefit of the committee and for the evidence, could you go into detail as to why you think more representatives would be good for the public.

Dr Bonham: There are a few benefits to having more members of the House of Representatives. The first is that it will reduce the small amount of malapportionment that exists in the House of Representatives, which is largely the result of Tasmania having five seats and the Northern Territory having two. It would also allow for less of an impact on rounding on the fairness of electorate sizes. Those are the points that I covered last session. I think it would allow for more localised representation and probably more diverse representation. It would give Independents and minor parties a slightly better chance of winning seats. A lot of Independents were very unlucky at the 2025 election. It is very hard, with the size and population of some of these electorates—even, in some cases, the physical size—for a minor party to collar enough of the votes and enough of the different parts of some of these very diverse electorates to get elected. We ended up, in some ways, with a rather bland House of Representatives result, in terms of representation for parties other than the major parties. I suspect an expansion would improve that. You might get more rural Independents. You might get the odd One Nation seat. The Greens might be less precarious in the chamber and that sort of thing. I don't think it would lead to a flood of crossbenchers, but I think it would make the situation slightly better.

There's also the general issue of having an MP serving fewer voters. It means that there's more chance that a voter with a particular issue can get their MP acting on it. The fact that the electorates have nearly doubled their enrolments since the last expansion suggests to me that it is time to expand. In the article you mentioned, I refute the claims that this would lead to a partisan advantage for the Labor Party. In fact, if anything, it would be slightly better in terms of likely seat outcomes for everybody else.

CHAIR: In terms of representation, what impact do you think larger electorates have had over the years on people's trust in the system and our ability to represent their views?

Dr Bonham: I couldn't say anything about it having an impact on trust in the system, but I do observe that in Tasmania, which has smaller enrolments per electorate because of Tasmania having the five guaranteed electorates, the connection to the local MP seems to be closer. It's the 'everyone knows this person' kind of thing, and they seem to be closer. I think you don't get that in a lot of the mainland state electorates.

CHAIR: What are the benefits of that more localised approach? How would you see that strengthening the system?

Dr Bonham: Firstly, voters are more in touch with their MP. It's easier for their MP to devote time to particular voters who may have unusual issues. Also, if we had fewer electors per electorate, we would have electorates with more distinctive characters and that are less mixed. This would probably be good for major-party MPs, in terms of having more major-party MPs representing an electorate with a distinct character.

CHAIR: In terms of expanding the House, would you link that to the number of senators per state? Is that the model you're suggesting? What are your views on expanding the number of territory senators?

Dr Bonham: The number of senators per state links to the number in the House, as per the nexus provision. I don't believe that there's any prospect of getting the nexus provision scrapped by referendum, and I'm not sure that it should be. In terms of territory senators, I expressed concerns in the previous session about the linking of territory senators to the one-vote one-value issue. I argue that having more territory senators would actually increase malapportionment in the Senate, which is not prima facie a good thing. There are valid arguments for increasing the number of territory senators, in terms of giving territory voters access to a similar quality of participation in the electoral process to everyone else. Where everyone else is voting in these multicandidate elections, you don't have to think about strategic voting; whereas, because the territories only elect two people at a time, they're not really proper proportional representation elections. That is one angle. The angle that has also been argued is trying to ensure that territory voters for a major party will have a major-party representative. Having said that, the ACT Liberals' performance in this Senate election was so bad that, even if there had been four seats, they would have only barely won one of them. It was very close. So there's no actual guarantee that expanding it will ensure there will be Liberal senators from the ACT. If their vote continues to decline, there might not be.

The reasons for the expansion would need to be advanced very carefully. Unsound reasoning needs to be avoided. We need to remember that the granting of territory senators in the first place was controversial at the High Court level. I think it needs to be focused on the sound arguments and not the 'oh, but Tasmania has so many, so we should have this many too' kind of argument.

CHAIR: Sure. This is the last question from me before I go to Senator Hodgins-May. In terms of the model of territory senators being up for election at the same time as every House election, if territory expansion were to occur, would you suggest splitting them into half elections, on the same terms as state senators, or would you keep that alternative system?

Dr Bonham: I would definitely keep it as it is. If you went up to four senators per territory, I would definitely keep it as four senators all-in all-out, because if you have it as two senators elected at a time with six-year terms there's no benefit in terms of improving the electoral experience for voters in those territories. They're still voting in these impoverished two-seat elections.

CHAIR: Thank you. I'll go to Senator Hodgins-May.

Senator HODGINS-MAY: Thank you, Dr Bonham. I'm picking up on a point you said at the beginning about how it's unfortunate people don't understand the voting system more comprehensively, which I wholeheartedly agree with. I wonder if you have any points on civics, maybe, that you would like to suggest that we consider throughout this committee.

Dr Bonham: I'm not an expert on how to educate voters on getting this stuff right. Obviously, it would be good if, to the maximum possible extent, people were aware of some of these things at school level. But they can be taught it at school level and they can still forget. Things like: you cannot waste your vote; the person who you put last can never get your vote; very importantly, you decide where your preferences go, and parties do not decide where your preferences go for you; and parties can put out how-to-vote cards, but those are recommendations.

Something that I think that there is not enough awareness of is the low level at which how-to-vote cards are followed. I frequently see people claiming, still, that most people follow how-to-vote cards. Only about a third of voters follow how-to-vote cards for the Reps. For the Senate, I think it's less than a quarter. Those proportions tend to be higher for the major party voters and very low for the voters who, in most seats, have their candidates eliminated. When a voter's first candidate is eliminated in the House of Reps, the chance is very high that that voter is not following a how-to-vote card and is making their own decisions. We get a lot of nonsense about preference games and who's preferencing whom, but it actually has not a huge amount of impact.

Senator HODGINS-MAY: Thank you, Dr Bonham. I look forward to seeing your submission and appreciate your attending today.

CHAIR: Senator Mulholland.

Senator MULHOLLAND: I want to go to some questions about disinformation and misinformation, if I can. We're seeing a rise in disinformation and misinformation, particularly around elections. What has been your experience working through this rise of misinformation, particularly online around election periods?

Dr Bonham: I'm dealing mostly with misinformation about the election result and how it happened. I see probably more of the after than the before. Although, before the 2022 election, I did see a lot of preferential voting misinformation, particularly of the form trying to say, 'A vote for some party is a vote for another party,'

kind of material. That was very common in that election. I can't remember seeing as much of it, myself, online in the lead-up to this one. I might have a dig back through my Twitter files and see what I did see.

Senator MULHOLLAND: On that disinformation about the election results, what categories of individuals or groups would you largely say that type of material and argument is falling into? Are they individuals? Are they people that appear to be bots? Are they groups attached to political parties? What are the main groupings of people that you think are spreading misinformation about the election result?

Dr Bonham: They're not bots. This is something that I get a lot of. I'm refuting some account on Twitter and someone will say, 'Oh, it's a bot.' They're usually not bots. It's particularly right-wing accounts that are outside the Liberal Party mainstream—the sort of Sky News orientated types. Some are the supporters of minor right parties. It does vary because some supporters of minor right parties are actually very knowledgeable about preferential voting. They are fighting the good fight to educate their own side of politics about it and to show people, 'Hey, you can actually use this to your advantage.' One Nation won two Senate seats by beating Labor from behind, using preferences. But there are some quite prominent disinformation accounts with high followings that just constantly shamelessly post nonsense about preferential voting, and I think the changes in the Twitter environment have made it more favourable for these people since Elon Musk became involved. They like the site more, so I see a lot of them spreading nonsense about what happened at the election and why it happened. There is a lack of awareness of what was the cause of the result and the fact that this result would have happened under any election system you can name. I see a lot of advocacy for first-past-the-post voting, even though that would solve absolutely none of the problems that the people supporting it claim that it would. I also see a lot of people trying to blame the result on immigration. I see people trying to say, 'Labor only won this by bringing in immigrants,' and they're not considering the timeframe over which people become citizens.

Senator MULHOLLAND: You're seeing all of that material on Twitter and, as you said, you're engaging with some of the discussion, trying to refute it. You are only one man, and it sounds like you're doing the best you can to refute some of that material online. How do we, as a society and as governments and as political structures, deal with that misinformation online—apart from trying to clone you to get out there and ask more questions and refute some of this material? How do we actually remedy the problem, particularly in places like Twitter, or X, where this is spreading like wildfire? Do you have any thoughts on how we can fix that problem?

Dr Bonham: It's a difficult question. I don't know how to fix it. I do what I can, but I find that about three per cent of the people I correct say, 'Oh, I hadn't thought about that, thank you.' And a very high proportion of the rest respond angrily, don't respond at all or simply block me.

I think the AEC does a very good job of tackling misinformation in the lead-up to election campaigns, but the AEC's role is really limited to the election period and policing electoral activity during the election period and not to explaining the mechanics of the results to people.

Senator MULHOLLAND: On the topic of the AEC, when the AEC came in to give evidence, we talked to them about these issues as well. They were reticent to want to take a role in determining truth in political advertising and truth in political materials. They were very reticent to want to take a role in addressing dis- or misinformation. My counter question there was: if not the AEC, who? Their answer was, 'The people get it right, and they can see through this material,' which I think, to a certain extent, there is a bit of truth to, but that's leaving a lot of things to chance if there is a lot of misinformation out there. I welcome your thoughts on where that sits: if not the AEC, then who?

Dr Bonham: I covered a lot of this in my 2022 submission, and I don't think my views have changed on that at all. I'm very cautious about having a part of a government be an arbiter of general truth in election campaigning or expanding the role of the courts to do that. I'm particularly concerned about the AEC's perception of neutrality and the risks to the reputation of the AEC if the AEC has to get into judging truth and falsity in sometimes hotly contested areas. I'm very cautious about any proposal for broader truth in advertising legislation. I think it is worth looking at whether there is a little more that can be done in terms of the existing framework around the statements that can mislead an elector in relation to their vote. I mentioned in my 2022 submission or in the hearing that I would like to see more control of statements of the form, 'A vote for a party X is a vote for party Y.'

Senator MULHOLLAND: We asked the AEC some of those questions. They take a narrow view of authorisation: as long as you have the right name, details and address, and you comply, they tend to have a narrow view, so perhaps a bit more scaffolding around what an authorised piece of material looks like might be an avenue.

Dr Bonham: Authorisation isn't something I've looked at in any detail lately.

Senator MULHOLLAND: Thank you.

CHAIR: Mr Neumann.

Mr NEUMANN: Senator Mulholland has done a great job of asking the questions I was going to ask, so I will focus on the expansion of parliament. Thank you for the work you've done over the years. Having a look at your website and having a look at some things you put online about the size and the expansion of parliament, isn't it the case that, back in 1984, the average enrolment was something like 67,000 in every federal electorate; that's about right, isn't it?

Dr Bonham: Somewhere around there. I put the number of what I found it to be in my article because some of the claims circulating in the media were not quite right.

Mr NEUMANN: It's about 67,000; I think that's what you said.

Dr Bonham: Yes, 67,000. Seven had incorrectly claimed it was 75,000.

Mr NEUMANN: I had a look at my electorate of Blair, which was created in 1998. I think there were just over 74,000 voters when Blair was created in 1998. When I was elected in 2007, enrolment was 90,979, and according to the AEC website's latest data at the end of September it is now 142,969 voters. That's almost double the number of voters since Blair was created in 1998. That sort of expansion is the case in a number of seats, is it not, in seats like Longman and Wright? We're seeing that across Queensland in a number of seats; isn't that the case?

Dr Bonham: Blair is one of those that is well over quota and is headed for a haircut whether there's an expansion or not. One of the reasons this argument that Labor is going to benefit from the expansion is false is that the electorates that are most out of whack are growth-corridor seats around South-East Queensland. With the exception of Blair, the remainder are held by the LNP. Those are particularly extreme cases at the moment.

Mr NEUMANN: One of the things I've noticed is that, even though we haven't expanded the size of parliament since 1984, we've expanded the number of people, or staffers, who work in electorate offices to assist federal politicians in the House of Representatives and the Senate since 1984; isn't that the case?

Dr Bonham: I haven't studied the staff numbers. I just observe that I think there's no substitute, for some issues, for an MP themselves having to put a bit of time into looking at an issue, and there's still only one MP per state.

Mr NEUMANN: With the exception of Tasmania, haven't we seen a number of states increase the size of their legislative assemblies? Queensland has, and I think New South Wales has increased the size of its state parliament.

Dr Bonham: I haven't looked at the pattern of increases. Queensland had a relatively minor change that then got packaged with changing the preferential voting system as well via amendments. I haven't looked at the state numbers; I've just looked at the federal parliament in isolation for these purposes. Tasmania has recently had a return to a previous level.

Mr NEUMANN: If you can take that on notice and have a bit of a look at that, that would be good, to see the size of the state parliaments. Anecdotally, you can see that, because the population of the states continues to increase, the biggest states have increased the size of their parliaments over the years. I'd be keen to get that information from you, if you can do a bit of research, because I don't think we've had a corresponding increase in the size of the federal parliament since Federation; it has expanded only a couple of times.

I'm also keen to hear from you about what happens with the Northern Territory. My observation as a federal MP is we seem to have to pass a piece of legislation every term that maintains two House of Representatives members in the Northern Territory. Can you comment on that.

Dr Bonham: There is a mathematical issue when the number of MPs that the Northern Territory is entitled to falls between one and two: at which point should you round that to one, and at which point should you round that to two? It's quite a technical mathematical issue. I think the old formula was too harsh, so it is good that it was changed. But if the Northern Territory's population relative to the nation's keeps going down, then you will get this issue again at some point and you will have to consider on what basis you keep maintaining two MPs for the Northern Territory. One of the benefits of expanding the House of Representatives is that that will push that issue away for a while as well. The Northern Territory will be closer to two MPs as a share of population, and there will be less malapportionment in its favour.

Mr NEUMANN: In the past you have talked about putting the number of senators per state up to about 14. What's your optimum number of House of Representatives seats in the federal parliament?

Dr Bonham: I talked about both the expansion to 14 senators per state and the expansion to 16 senators per state; I have some new modelling on the last couple of elections coming on that. One interesting thing is that

some of the 4-2 left-right splits that we've had in recent elections become 4-4 splits if you do them as eight senators elected at a time, which would be the 16-senator model. I don't have a strong view about which of the two expansions is better. I think it would be desirable to see at least some expansion soon.

Mr NEUMANN: You're a strong believer, from what I read online, of single-member seats rather than proportional representation, the Hare-Clark system or anything of that nature. You believe that results in a democratic outcome in our polity, do you not?

Dr Bonham: I think it is good to have two chambers rather than one. I think it is good to have two chambers elected by fundamentally different electoral systems. I like the balance of having one seat of single-member electorates and one seat that's closer to proportional representation.

Mr NEUMANN: You're trying to convince a Queenslander here, Kevin!

Dr Bonham: Yes, yes. My experience is particularly honed by having seen some very bad legislation passed through the lower house in my own state and not become law only because the upper house amended it or blocked it. I think it's beneficial to have two chambers. I care more about blocking as much bad legislation as possible than all good legislation always getting through quickly, necessarily; I'm a bit conservative about that aspect of it. I like the interplay between different electoral systems so that something, to pass, has to run the test of two different electoral systems, with a mechanism for breaking the deadlock between them if necessary—and we've got that. I wish the Senate was not so malapportioned or state based and closer to a proportional representation of the people as a whole, but we're a bit lucky that, because the states all vote in roughly the same way anyway, that tends to get cancelled out.

I'm not necessarily against the idea of multimember seats for the lower house, but I think it needs to be handled with care. Hare-Clark applies well in a little place like Tasmania, with high electoral literacy and where everybody knows everybody. I don't think introducing Hare-Clark to Western Sydney is going to work particularly well, for instance.

Mr NEUMANN: Thanks very much.

CHAIR: Ms Campbell.

Ms CAMPBELL: Thanks for coming to talk to us, Kevin. I appreciate it. The first question I have is in relation to the false claims that you were talking about with respect to voting processes. I was wondering whether you've seen any models from other jurisdictions, whether they be in Australia or overseas, for what works to prevent those kinds of false claims, beyond civics.

Dr Bonham: No, I haven't looked at other jurisdictions. Other jurisdictions have very different electoral systems. The false claims that we get in Australia are often unique to our own system, or very close to.

Ms CAMPBELL: Presumably, the false claims are unique, but false claims being made is, presumably, something that's happening across the globe as well.

Dr Bonham: In the US, you have loads of false claims about all manner of electoral processes, but their system is very decentralised, and, if somebody wanted to take national action against them, they would find it very difficult to do so. I haven't looked at other jurisdictions to see what they do about these issues.

Ms CAMPBELL: I understand. In terms of distinguishing between misinformation and disinformation and general negative campaigning, do you think that there's a legislative or regulatory way to do that?

Dr Bonham: In terms of general truth-in-advertising kinds of provisions, I think it's very difficult. I particularly get concerned about big controversies like climate change, vaccines and things like those, where one person is going to say, 'This is misinformation,' and another person is going to say, 'No, it's just an alternative viewpoint.' If a body like the AEC gets brought in to arbitrate those disputes, it gets very difficult.

Ms CAMPBELL: Do you believe that any domestic groups engaged in interference in the last election?

Dr Bonham: I am aware of the broader debate about the campaign activities by groups at polling booths and things like that. I don't know. Obviously, there are various organised groups that are actively campaigning with messages that might be misleading. But I don't know about interference.

Ms CAMPBELL: What do you think the threshold for interference is, in your opinion?

Dr Bonham: When I think of the issue of interference, I think of foreign interference. I don't think it's a major issue.

Ms CAMPBELL: Do you think that interference can only occur if it's undertaken by foreign entities?

Dr Bonham: I'm not sure that—is there something specific that you're getting at as a possible example?

Ms CAMPBELL: No. In terms of interference, we undertook some hearings last week and talked about interference in the context of mis- and disinformation and when something would hit that threshold to be, or be considered to be, interference, outside of a foreign entity.

Dr Bonham: I'm so used to thinking of the term 'interference' in terms of someone coming from outside a system and interfering with a system in that way. I'm not so used to thinking of it in terms of actions within a system that's part of the process; I'd use other words for it. Obviously there is a lot of misleading campaigning that goes on with any election.

Ms CAMPBELL: I understand. That's all from me, Chair.

CHAIR: Mr Bonham, thanks very much for your time today and for coming at such short notice. We look forward to receiving your written submission. If you've been asked to provide any additional information, would you please forward it to the secretariat by 21 November 2025. You will be sent a copy of the transcript of your evidence and will have an opportunity to request corrections to any transcription errors.

GRAY, Mr Marty, Founder, 4 Year Terms Australia

[09:45]

CHAIR: Welcome. Do you have any comments to make on the capacity in which you appear?

Mr Gray: 4 Year Terms Australia is an advocacy group focused on achieving fixed four-year terms for our federal parliament.

CHAIR: Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I invite you to make a brief opening statement before we proceed to discussion.

Mr Gray: I'd like to start by saying that Australia has one of the shortest parliamentary terms in the democratic world. We're one of only eight countries which has a term of three years or less. The Prime Minister of the day also has complete discretion to call an election earlier than this. In practice, this means Australia faces an electoral campaign, on average, every two years and eight months. I've got longer to pay off my phone plan at the moment than that.

It is the combination of really short maximum terms of three years and an unfixed election date which means that our federal government actually has very little time to govern compared to most other governments around the world—and compared to our states. It also means Australia's economic growth consistently drops in election years as businesses and the Public Service have to delay decisions and investments every 2½ years while waiting for polls to be called. These limitations around our parliamentary terms have been debated, and known about, for over a hundred years, but they're getting more acute in the modern era. The complexity of the federal government and the issues that it's facing are only increasing. This means our short terms are often ill-equipped to deal with some of the biggest challenges of today. The 24-hour news cycle and professional campaigning mean strategising and commentary around when the election is going to be held are a far greater distraction than they've ever been in the past. And now every state, territory and local government operates on four-year terms, and all except Tasmania have fixed terms. Our federal government is an outlier, resulting in inconsistencies and misalignment with our other levels of government. This all has a really significant, but often hidden, cost on our economy. It's estimated that, if we switch to four-year fixed parliamentary terms for our federal government, we would save around $60 billion over the next 20 years. This committee, I think, can be the start of that change.

The first priority should be to determine what an appropriate model is and to secure the necessary multipartisan support to deliver a fixed election date via legislation as a first instance—with appropriate guardrails. This would lay a really strong foundation for a subsequent referendum on fixed terms and then, ultimately, perhaps one on four-year terms as well.

I know many baulk, and rightly so, at the prospect of a referendum. There are two strong reasons why we should think about one when it relates to parliamentary terms. The first of these is that there's political support right across the political spectrum that just doesn't exist for a lot of other issues. If you put John Howard; Kim Beazley; Bob Hawke; Anthony Albanese; Peter Dutton; Julia Gillard; Malcolm Turnbull; state premiers like Annastacia Palaszczuk and Dominic Perrottet; Senator David Pocock; and interest groups like the Grattan Institute, the Business Council of Australia and the Australia Institute in one room and tried to get them to agree on something significant about how the country should be run, there are probably not many things they would agree on. But they can all agree, and have recognised, that our current parliamentary term is holding us back. We really should take advantage of that.

Despite this political support right across the spectrum, the reason we haven't got movement is that there's been this belief that the public isn't willing to accept change and that the issue is too boring or that politicians are too self-interested to pass a referendum. I think these concerns are overstated, and we should give the public far more credit. When asked, the majority of Australians consistently support longer terms and an election date that is set more independently than it currently is. We had a New South Wales and a Queensland referendum pass when they moved to four-year fixed terms. This is also an issue, though, where political leadership is required to start that debate. Term lengths are an invisible cost, and they won't be a priority until our political leaders make them one.

New Zealand's experience shows this. A 2023 parliamentary inquiry, very similar to this one we have today, recommended that they move from three- to four-year terms. That led to legislation that is now before the New Zealand parliament, subject to a referendum. This committee can, I hope, play a very similar role to that one in

New Zealand. Australia's short parliamentary terms are a historical relic designed to align with colonial parliamentary terms that no longer exist, and we should take this opportunity to fix them for good.

CHAIR: Thanks, Marty. You've outlined some of the reasons, but what was the catalyst for you starting 4 Year Terms Australia?

Mr Gray: It happened during the last federal election. I read in the paper that Peter Dutton and Anthony Albanese both agreed that we should move to fixed four-year terms, probably after being asked for the thousandth time that day when the election was going to be held. That said to me, 'Here are two leaders who agree on nothing during the lead-up to an election campaign, but they agree on one of the most fundamental things about our Constitution and how our parliament should run.' I looked in further detail and saw that this had been an issue for so long, with so much political agreement, but the problem was that there was a lack of understanding or willingness to engage the public on the issue because it is a little bit tricky, it is a little bit boring and there's always a higher priority. There's a gap where I think we can better communicate with the public about the benefits of this change.

Doing some work in New Zealand, I recognised the fact that they're currently going through this process. When it got talked about a little bit more, the public really understood it. It's not rocket science; people know the difference between three and four. People also really dislike the six months of talking about when the election is going to be held, which is a decision that holds very little interest for the general public and has very little impact on their daily lives. Talking to more people, you realise that there's a lot of agreement and a lot of benefit here.

CHAIR: Define what you mean by 'fixed'. We've heard some evidence that says you could legislate fixed term but still keep the provisions within the Constitution that allow for a double dissolution and that allow for the dissolution of parliament. Is that the model that you're suggesting? Is it a full rewrite of the Constitution where you remove those powers and it's fixed, or is it fixed but can be dissolved?

Mr Gray: The model that I think works is what you would call semi-fixed. There's a spectrum. What we have today is the political leader of the day has complete discretion to call an election whenever they wish within that term length. The other end of the spectrum is entirely fixed; it can't change. The US House is an example and Norway is another example where the election date won't change, basically, under any circumstance. What the vast majority of countries do and what the vast majority of our states and territories do is have a version that's semi-fixed. So you have a fixed election date, but there are provisions that enable an early election to be called in certain circumstances—essentially to break a deadlock in the parliament.

CHAIR: So the double dissolution stuff is still there. The government of the day would have the power to retain that.

Mr Gray: Exactly. If there's a vote of no confidence in the government and confidence can't be regained within a certain period of time or if some other leader or party can't regain confidence in a certain period of time, there's still the ability to call an early election. What that model does is retain the flexibility to call early elections in circumstances that require it. It also removes an issue of unfairness in the current model, which allows one political leader to basically set the date to their advantage. But the bigger issue for Australia, I think, is it reduces our already very short terms. Our maximum term is three years, but we go down to 2.7 years because of these unfixed terms that are called early.

CHAIR: You referenced in your submission over $60 billion in benefits over 20 years. Could you expand on that a little bit more.

Mr Gray: Absolutely. That was a study done late last year by Mandala Partners on behalf of the McKinnon Foundation. The benefits fall into three buckets. The first bucket is a better-performing parliament. At the moment there's a very short window—you would all know far better than I do—where you can really focus on passing legislation and getting things done. All of the people are in their roles and know what they're doing, but they're not yet campaigning. If you can expand that window—at the moment it's probably around 12 months, in some circumstances, under a 2.7-year term, but, under a fixed four-year term, you actually double the amount of time that the parliament and the government are working and solely focused on getting stuff done. There's a huge productivity boost there.

The second category of benefits, which is actually the largest at around $40 billion, is a more productive public service and a more productive private sector. The Public Service, in the lead-up well before the election is called, has to pause a lot of big investments and decisions because it has to wait. It doesn't know when the election is going to be and doesn't know who's going to win, so it pauses a huge number of decisions. I've been a public servant in caretaker mode. I can say from personal experience that productivity is not at its highest.

CHAIR: Be careful what you say!

Mr Gray: I'm just speaking about my own productivity, not anybody else's, I assure you. It happens in the private sector all the time as well. You don't know when the election is going to be called. If there are big policy differences between parties, you don't even know who the minister is going to be. You don't know who's going to have the balance of the Senate. So what private companies is just delay big decisions. I spoke the other day to somebody who works in the building and construction industry and who reached out to me after I started this campaign, and they say they regularly pause major builds waiting for an election campaign to be called. So you're waiting six to nine months extra for new houses to be built—one of the biggest issues our country is facing—because we have some of the world's shortest parliamentary terms and complete uncertainty about when our elections are going to be held.

CHAIR: I'll go to Senator Hodgins-May.

Senator HODGINS-MAY: Thank you for joining us today. You noted in your submission that every state and territory except for Tasmania has fixed terms. Expanding on your previous answer to the chair, in your view, how might introducing fixed terms at the federal level improve the functioning of our elections and strengthen democratic processes, regardless of term lengths?

Mr Gray: I think it will do so in two really important ways. The first way is that it will increase the length of our extremely short terms already. If you have a fixed election date, you basically reduce the ability of a prime minister, or increase the political cost for a prime minister, to call an early election, so we have more delivery time. An unfixed term in a five-year government, like in Canada or the UK, isn't as much of an issue, because you're not reducing the amount of time that much. But, when you already have some of the world's shortest maximum terms, if you reduce it by three or four months that's three or four months of really productive government time. That's why it's so important in Australia.

The other reason why it's important, I think, is that it just increases enthusiasm for the democratic process. There is not a single person in Australia who thinks talking for six months about when the election is going to be held, betting on when the election is going to be held and hearing endless commentary on the news saying, 'Oh, well, the NRL Grand Final is this day and school holidays are this day, so we think it's going to be this day'—you know, it is extremely enduring for the general public. If we can spend more time focusing on the actual issues that matter during an election, rather than when the election is going to be held, it's a far better outcome.

In the states, that's something that's just a given. We don't have to have that conversation in the states, because we know when the elections are going to be held, because they all have these semi-fixed terms where the election is going to be held on a certain date unless there are extenuating circumstances, and we almost take it for granted because it's not something that we face.

Senator HODGINS-MAY: Yes, thank you. As someone who's been pregnant for two election cycles, I think it would be quite useful from an accessibility point of view too. You've also talked about potential economic benefits of four-year terms. Have you undertaken, or are you aware of, any analysis of the economic impacts of introducing fixed terms at a federal level?

Mr Gray: It's a really good point. The most recent research that's been done on this is focused on both together—basically, fixed and four-year terms. I think the general consensus, from a lot of experts who've worked on this for a long time, is that the benefits of fixed terms are probably greater than those of moving to four-year terms, predominantly because of that indecision and that risk and uncertainty that exists in both the Public Service and the private sector. If you can remove that, that alone will unlock a lot of the benefits. If the benefits from reducing that uncertainty in the Public Service and the private sector are $40 billion for fixed and four-year terms, and you talk about 60 per cent of the benefits of that, you're looking at $24 billion over the next two decades.

Senator HODGINS-MAY: Thank you. Moving back to four-year terms, you make the case for increased government accountability via four-year terms. Is there a counterargument, I suppose, that less frequent elections may reduce accountability by removing regular opportunities for voters to express dissatisfaction?

Mr Gray: It's a really good point. What I think moving to fixed and four-year terms will do is not about making politicians' lives easier; it's about making them perform better, in my view. At the moment, you have an election every 2.7 years. It's a system that essentially forces politicians to be in this constant campaign mode, and you have a very limited window where your job is solely to just get things done to improve people's daily lives. So if you can move to four-year fixed terms, what you can end up doing is holding politicians more accountable for what they deliver in their job rather than what they say they'll deliver on the campaign trail. There's been evidence done in a lot of other jurisdictions that the effectiveness of parliaments actually increases when you do have a longer term.

Obviously, it's a spectrum. You don't want terms that are too long, but four years—and definitely fixed terms—seems to be the right balance, particularly in Australia, because Australians vote more than almost anyone else in the world. We have three levels of government. We have compulsory voting, unlike anywhere else in the world. Australians aren't putting their hand up, saying, 'I want to vote more often.' What they're saying is, 'I want my politicians focused on long-term delivery and improving my life rather than the short-termism that our current model essentially forces us all into.'

Senator HODGINS-MAY: You've explored a few different options to align Senate terms to a four-year lower House term. Do you have a preferred option, and do you think there are any drawbacks to an eight-year Senate term?

Mr Gray: That is definitely the most complicated problem in this whole debate, and it's why I think we should focus first on legislating fixed terms and potentially then going to a referendum on fixed terms. It's much simpler and easier to explain that. When it comes to four-year terms, there are two really realistic options. One is to extend senators' terms to eight years and continue to have a half-Senate election every general election, or you reduce them to four years and then you basically have a double dissolution every general election. There are pros and cons to both. The biggest negative to moving to eight-year terms for the Senate is that same one about accountability that you mentioned before.

Eight years is a long time to not be held accountable at an election. There's a concern that that is too long. It still exists under our current model of six, but eight obviously makes that longer. The more recent concern that people have raised about that is about accountability in relation to how they're voted in. If you're a senator voted in with a certain party and you leave within the first six months, you've got seven and a half years potentially as an independent from another party. There's a question as to whether or not that is too long, because the overwhelming majority of Australians don't vote for an individual senator; they vote above the line. The concern about restricting it to four years is that the whole reason we had extended senator terms at Federation was this idea of continuity. You didn't want a full handover at a general election, particularly if a certain party won a really large proportion of the vote.

There's a debate as to the merits of that in the modern era as minor and independent party votes have consistently increased not only in Australia but in all democracies, so the chances of a government of the day gaining power in both the House and Senate is increasingly not that high. Whether or not that's an important check or balance going forward is something that's debated a bit more. I personally, and most of the people who've worked on this, suggest that having equal four-year terms for both the House and Senate is the better option on balance, but I also think the one that's going to pass the referendum is the most important too. It's more complicated than just talking about fixed terms in my view.

Senator HODGINS-MAY: Thank you for your time today.

CHAIR: Senator Mulholland?

Senator MULHOLLAND: Thank you very much for your submission. It was really interesting. We have previously heard from some other witnesses around the fact that the last few federal elections occurred around the same time. They roughly ended up in May, and they run to a fairly standardised format. It was interesting to read in the submission that it's about two years and eight months on average. That's not necessarily consistent with what we were hearing, so that's helpful advice. It was also very interesting to read about the productivity piece. I just wanted to tease out a little bit more. You talked about a two-step process of how we might be able to get to fixed terms. In stepping that through from a legislative perspective, based on the advice and the research you've got available to you, do you think it would be fairly simple for a parliament to change the electoral act to add a fixed term for three years without needing to proceed to a referendum?

Mr Gray: Other countries have done this as well. It is definitely possible. I think that should be the first step—to revise the act. Obviously there has to be a very multipartisan approach, where the parliament can be as cohesive as possible around it. The concern that many have raised about this is that the Constitution will override what legislation is passed, and the government of the day can repeal that legislation as well, so it's obviously not as rock-solid as changing the Constitution. But I think it does three things that are really important.

The first and foremost thing is: you nail down what the model should look like. What are the guardrails? What are the exemptions? When would the date be? If you go through the process collectively, as a parliament, to decide that, that's a lot of the problems solved.

The second thing that it does is to normalise fixed elections for the general public. If we can have an election or two elections under a legislated, fixed, election day, then, when you go to a referendum in future, you're not asking the Australian public to accept something new; you're just asking them to enshrine an existing process into

the Constitution. If we were all used to having an election in the first week of May, for example, and all we were asking the public was: 'Should we should do this going forward, or should we just let the Prime Minister decide whenever they want?' they'd go: 'Hey, it's working pretty well. Why don't we keep doing this?' So I think those are two important points.

The third point that's really important is: a prime minister could, if they had the numbers, repeal that legislation, or they could just go to the Governor-General and say: 'I know the legislation says this, but the Constitution says I can call it whenever I want, so I could do that.' So they could do that, but it increases the political cost to any sitting prime minister of doing that. If you're a prime minister today setting an election whenever you want, there's no political cost in doing that; it's actually assumed that you will do that, and everyone just bakes that in. If all of a sudden you have to either repeal legislation or, potentially, contravene that legislation, you're going to go: 'Hang on. The slight benefit I might get from having it on one week over another is not worth that, so I'm going to just do it when it's said it's done and everybody can bake that in.' If you get that process in place and normalise it, as we have for our states, then I think it's a much easier sell to the Australian public.

Senator MULHOLLAND: Would you anticipate that that first step of electoral act reform, which puts you on a fixed three-year term, should be in place for the next federal election, due in three years time?

Mr Gray: That would be a fantastic outcome. I think fixed terms are easier to do that. And we've almost done it. There was an example—I can't remember which election it was—when Julia Gillard, when she was prime minister, said when the election was going to be held, well in advance of it. And you're not asking for extra time as a prime minister. Queensland, in moving to their fixed term, said that any four-year term should go after the next election, because giving extra time obviously should happen after the next election. But, if you are just fixing a term, I see no reason you shouldn't do that within the current term, because I think the Australian public would actually be very supportive and very relieved that they didn't have to endure another six months of political ouija-boarding about when the election date was going to be, and businesses and the Public Service would have confidence, from knowing when it was going to be, to make the investments and the decisions that they need to. So I think we should do it in this term.

Senator MULHOLLAND: Absolutely, and, because I'm a senator for Queensland—and the world revolves around Queensland, allegedly, Chair!—I think it's taking people on a journey, and in Queensland we did take the community on a journey, and that brought a lot of public support, as I think people could see where we were going. If there were support to move to three-year fixed terms and we were to bake it in for the next federal election, that would be 2028. It is going to be a bit of a hairy year in Queensland, because we've got fixed four-year terms for local government ending in March—the last weekend in March; we've got a fixed four-year term for the state election at the end of October; and then, potentially, if we were to fix it in for the federal election, say, around May, we've got three elections. Obviously, there's a big country out there, so there are lots of different electoral cycles. So maybe that 2028 experience might provide some argument for pushing it out one year, to four. The poor people of Queensland might be electioned out, potentially, in 2028.

Mr Gray: The world does revolve a little around Queensland in this respect—

Senator MULHOLLAND: Thank you!

Mr Gray: Absolutely! You were a state that went to a referendum to move to four-year fixed terms and it was successful, so it shows it can be done. That created what I think is considered one of the best models for what the semi-fixed term looks like, in terms of what the exemptions should be. So it's a really great case study, and what you've just described—what 2028 looks like—is the exact problem that we have, at the moment, with three-year un-fixed terms, when our federal government is the outlier with state and local governments. You constantly have these overlappings that change every term and make it very difficult. I can't imagine the amount of hours that are unproductive in both the private sector and the public services of those respective governments that are just spent trying to figure out all those things. Imagine the different intergovernmental programs, the changing ministers and the changing priorities that happen as a result in that year—that's a huge cost to the Queensland economy.

Senator MULHOLLAND: Exactly. I don't think I'm going to get any better evidence that the world revolves around Queensland, so I'll leave it there!

CHAIR: Leave it at that before we get conflicting evidence!

Mr BURNELL: Isn't one of the issues that you have with fixed three-year terms that you're always going to have this clash with state and local governments whereby you have a culmination of all three tiers of government having a vote in any one year? It happened in South Australia in 2022.

Mr Gray: You're absolutely right. That's one of the challenges with three-year terms in general; having an inconsistency between the federal government and everyone else. That's one of the good arguments for why we

should move to four-year terms. In respect of whether or not we should have unfixed or fixed terms, as you've heard from our Queensland experience in 2028, that's a problem that we still face today. In the last federal election, the Western Australian state election was conflicting as well. It's not an issue that goes away if you move to fixed terms, but what it takes away from is the politics of the decision—all of a sudden everyone outside of the parliament has more confidence in when that election is going to be held. Of course, there are still going to be conflicts, but you can work through a process that makes that a lot less uncertain for everybody else.

In the longer term, if you do move to four-year terms, or if you enshrine this in the Constitution, there needs to be a process—now we've got this new system, how do we align state, local and federal government elections in a way that's as efficient as possible where they're not overlapping with each other and you maximise the amount of time those respective governments can work together. Former New South Wales premier Dominic Perrotet has talked about this a lot—he found it incredibly difficult as a premier because he'd have three to six months with his counterparts in other states when neither were campaigning and neither were in the chair. He said that made it incredibly difficult for him to negotiate with the federals and other state premiers. If you move to fixed four-year terms, I think you can resolve that issue.

Mr BURNELL: Since Federation, we've had 45 referendums; we've only had eight that were successful. That means we're running at an average of about an 18 per cent success rate. If referendums were easy, we'd probably have more of them. You've made comments to the effect that there's general wide support for fixed terms. What research has your organisation done to back up that statement?

Mr Gray: It's a great point. The first point I'll come to is what ingredients would make a referendum on this as successful as possible? There are a couple of things that we can take account of. I should recognise the fact that there was a referendum on four-year terms when Bob Hawke was prime minister in 1988—which failed—and there a couple of really important lessons we should take from that process.

First and foremost, it wasn't bipartisan at the time. There was campaigning, and votes fell quite similarly along party lines. My firm belief is—similar to what happened in New Zealand and in some of the states—that it has to be multipartisan for this to go anywhere. The second thing was that that referendum was bundled in with about four or five other questions as well—there was recognising the local government in the Constitution, there was a quasi-bill-of-rights idea as well. There was too much information on too many different things. If you're going to do a referendum on term lengths, it has to be a single question that focuses on that, and that alone. Public education well in advance of the question is super important. This is an issue that's front of mind, but as soon as you ask people and talk to them about it, increasingly there's support.

In terms of what evidence there is for that, a bunch of different media companies—AFR did a recent poll that showed about 80 per cent supported the change and 60 per cent wanted a referendum within this term of government. There are a couple of universities that have done similar research on this which I'm happy to provide the committee. It's something that we've just started, but we really want to do some more polling to show that there is a lot of support for this idea.

Some of the other things that are really important are around how you stagger this. As I said in answer to the previous question, I think the right path forward would be to legislate and bed down a model for what fixed terms for three years looks like—get that in place—and get the public accustomed to it; get talking about it in the same way as in New Zealand. Once it starts being talked about, people get across it; they support it. And then we go to a referendum saying, 'Should we just keep the status quo of having a fixed election date rather than giving the power back to the prime minister to decide whenever they want?' Consistently, I think the argument across the country will be, 'Yes, we support this.' The success of the Queensland and New South Wales referendums in recent decades, I think, shows that there is support for this.

Mr BURNELL: Lastly, with the rise of AI and the use of other social media influence-style platforms, does that make it inherently harder to keep a clear message around something like a referendum for four-year fixed terms? Do you see any complications that we should be aware of? Do you have thoughts on how to deal with some of the mis- and disinformation through social media platforms, including AI?

Mr Gray: It's a really interesting point. I think the rise of social media and the 24-hour news cycle—and the politics associated with that—have really exacerbated the concerns with our current model. I think we've done pretty well as a country in spite of them, but because the media cycle is so fast now, and because the issues we are dealing with are so much more complex, two years and seven months is often really not long enough to actually spend the time doing that. In this permanent campaigning mindset, it's a lot harder to just focus government on the job of getting the work done. I think that is the biggest issue. As you pointed out, public education will be incredibly important. I think this issue is actually a lot less complicated than people think it is. 'Should we have an independent election date rather than let a political leader decide it?' That's a question that most people support,

and it's not the hardest question either. There's obviously a lot of detail on what the exemptions are, which most people probably won't care about. But it is something that's actually not too bad.

On your point about AI, I think that's a great point as to why we actually need to do this. If you're the minister and you get directed by the prime minister to legislate how we should regulate AI or disinformation at an election, you currently probably have a nine- to maybe 18-month window to pass that legislation—get it passed through the Senate. Our current model's just not equipped to deal with these issues. We need more time to actually be able to deal with them if we're going to move forward.

Mr BURNELL: Thank you very much.

CHAIR: Ms Campbell.

Ms CAMPBELL: Thank you for coming to share your views with the committee today. I too am from Queensland, so I'm glad that you are someone who also supports Queensland. I was going to go to your comments on the public consistently supporting longer terms. You mentioned research on that. I was wondering if you could please take us through the research.

Mr Gray: Absolutely. Probably the most comprehensive thing to start off with is the two referendums, or referenda, that passed in New South Wales and Queensland, which are probably the most comprehensive examples that show that there is support for this. There's some research that's been done—it's just being finalised at the moment—that showed roughly 75 per cent of respondents said that they support fixed terms and slightly less than that figure supported four-year terms. New Zealand, at the moment, is still tracking in the majority for its move from three- to four-year terms—although it's slightly more controversial there because they don't have an upper house, so there's concern it's giving too much power to the government of the day. It's something that we're planning on doing in the near future—to do a comprehensive national polling of what the support is for fixed terms, in particular, and then one on four-year terms as well.

In terms of more research that's been done, a fair bit's been done in Europe as well, where there have been a couple of referenda or pieces of legislation that have passed there. Generally speaking, you're looking at around two-thirds of people in a lot of countries that are saying, 'I want an independent election date—one that has less political interference involved.'

Ms CAMPBELL: What's been the public experience post the introduction of a fixed term?

Mr Gray: I would say in most instances—looking at what's happened in the states in particular—that, once it's in place, it no longer becomes an issue for the general public. The election's going to be when it's going to be. We spend less time focusing on the indecision around when it's going to be, so business and the Public Service have that productivity benefit. For the public, the biggest benefit is you don't have to spend six months hearing about when the election's going to be, and you can focus more on the issues that matter in an election or not focus on it at all. I would say, particularly in relation to fixed terms, the general public's experience is just more one of relief.

In other countries that have moved from shorter terms to longer terms, the general experience in reports from other countries—the New Zealand inquiry in 2023 looks at this in detail—is that it's obviously very subjective but there has been a reduced sense of 'short-termism' with government. There's roughly a 20 per cent increase in the amount of legislation or government programs that can be passed in non-election years—so you have an extra election year of that. You have one or two extra budgets within each election cycle, so your ability to do fiscal management within one term increases significantly. So the general experience is one where you have less short-term politics and more just long-term delivery.

Ms CAMPBELL: Have we seen the economic benefits flow through in terms of the figures in the places where there has been a move to those fixed terms?

Mr Gray: It's a good question. I'd have to come back to you on that. The studies I've generally looked at are that GDP growth drops on average 0.5 per cent in an election year. Obviously you still want elections, so that's an inevitability cost. That reduces by one year, and it reduces the uncertainty of—the study here in Australia, which used a lot of data from Europe, in particular, showed that there's about a 2.4 per cent increase in business investment when you have the increased confidence of a fixed, longer term.

Ms CAMPBELL: Thank you very much.

CHAIR: In closing, I have a few questions about your experience with New Zealand. What I understand is that there was some public sentiment that supported the move to fixed terms, then the parliament introduced legislation, and that's currently live. Are they still debating that? If that draft legislation is passed, it would then require a referendum in the future. Is that the sort of timeline of what's happening there?

Mr Gray: That's exactly right. There was a parliamentary inquiry in 2023. It was a report that looked at a range of things but effectively came to the conclusion that parliamentary terms are a balance between accountability and effectiveness. You want a parliament to be accountable to the people fairly regularly so it reflects the will of the people, but you also need to give them time to actually do the job.

It came to the conclusion that their current system of three-year terms didn't have that balance right—that it wasn't performing as effectively as it could, and that that could be increased substantially by moving to four-year terms. Legislation was introduced this year and is going through the process now until probably early next year. The prime minister has indicated there that, subject to a referendum, they intend to pass that legislation and effectively move to four-year terms.

I think one thing that's really interesting about the New Zealand process is that the argument for four-year terms in Australia is actually a fair bit stronger than in New Zealand for a couple of reasons. One is that they don't have a Senate. The biggest concern they have about moving to four-year terms is that the government of the day will have a lot of power, whereas we're one of the rare countries that has a democratically elected Senate, which holds the government to account every single day. It's very rare, obviously, for an Australian government to hold the numbers in the Senate, so there's a level of accountability that exists here that doesn't necessarily happen in New Zealand, Canada or the UK and the others. That's why one of the biggest questions in New Zealand has been around are they going to change their committee processes to give more power to the opposition and minor parties in response to longer terms.

The other thing is that they obviously don't have state or territory governments there. So the benefit of aligning state and territory governments with a federal term that exists in Australia doesn't really exist in New Zealand as well. They also don't have a written constitution, which makes things a little bit easier, but also again it doesn't have the same overriding power with courts as an Australian prime minister would have. It's interesting that New Zealand is willing to make this move because they see the benefits, even though, personally, I think the value of doing so in Australia is a fair bit stronger than it is in New Zealand.

CHAIR: Do you think that process whereby you've got the inquiry, it recommends and then you introduce legislation subject to a referendum, would help build the case for multi-partisanship but also passing a referendum?

Mr Gray: Absolutely. And that's the reason why I—

CHAIR: Rather than just copying it and saying, 'We're going to hold a referendum,' it goes through the parliament and through process.

Mr Gray: This is one of those issues the public is never going to come to parliament on, because it's an invisible, hidden cost on our economy. If you ask people about it, they're frustrated with the current system and they recognise its limitations, but there's always something more important, and there's been something more important for over a hundred years, now. What New Zealand has shown is that, once people knew the parliamentary inquiry process was multipartisan and understood the topic, and it started to be talked about, that's what really got the momentum going. That's why this committee is so important. I think it can play that exact same role. Without political leadership, we'll just keep muddling on, but what has been shown in New Zealand and other places is that, if you start the conversation and show political leadership, the public support this and are willing to come along that journey. I think the thing we should really take advantage of is the fact that we can legislate this, bed down a model and have a referendum on the status quo rather than a referendum on change. That is a huge advantage, I think.

CHAIR: So having a legislated process would help get a referendum over the line? If it passes both houses and isn't unanimous but has strong multipartisan support, and it gets through the House and Senate, then it's more likely to get through as a referendum?

Mr Gray: Absolutely. The constitutional professors will tell you, 'Well, a Prime Minister could still override that legislation, should they wish to,' and they absolutely could. But at what political cost? The political cost of doing that would be higher than the benefit of calling an early election in a week that might suit them slightly better. You've got a pretty good system in place, you show the public it works, you show them the model makes sense, the business and the public service communities will be so relieved to have that greater confidence to invest and make decisions, and the public will come on board through that process.

CHAIR: This is my last question. At the last JSCEM, it wasn't a bipartisan recommendation to go to four-year terms because of the eight-year provision in the Senate. My understanding is that just changing it to four years without realigning the Senate is probably the easier constitutional change. You extend it and therefore extend the Senate term. However, my understanding was that the commentary around the eight years wasn't necessarily that

it is eight years for the Senator; it's on the occasions where, like we heard from Mr Bonham earlier, someone leaves a political party and becomes a rogue for seven years. Would you support provisions to address that through a constitutional change so that, if someone were elected on a party ticket and were to leave the party, the party could then replace them rather than them sitting in the Senate for seven years, non-aligned? That's noting that the majority of Australians vote above the line and elect that group. In the Senate now we've got disaffected members from all political stripes occupying seats that they didn't personally achieve.

Mr Gray: It's a really great question. One of the biggest consistent concerns with extending Senate terms is exactly that issue. There's obviously the issue about accountability. Even if they stay in the same party, eight years is a long time as to whether they still reflect the will of the people. That's obviously increased substantially if that person leaves that party and goes to another or becomes an independent. Personally, I haven't looked into the details around what it could look like to basically replace a senator. It's one of the reasons why I think the focus of this committee and the initial steps should be on trying to legislated the fixed-term piece. That's an area where it's probably, hopefully—looking at the previous inquiry on this—easier to achieve multipartisan support and maybe even support from both senators and the House of Representatives. That's because it's not something that affects one house over the other. If you can make that the focus of this inquiry, get that locked into bed and make that the focus, then you can avoid muddling the fixed issue with the four-year terms issue. As soon as you start doing that—you start raising questions about the Senate and what that should look like—it becomes a much harder sell for the Australian public. Once we have fixed terms in place, then I think we should probably open up the debate about what a good model for four-year terms would look like, including how you deal with the Senate.

CHAIR: By 'legislating fixed terms first', you mean a three-year fixed term, right?

Mr Gray: Yes, that's correct.

CHAIR: That's only five months, but you still think that extending the average two years and seven months to three years would have the materially positive benefits as outlined for four-year fixed terms.

Mr Gray: I definitely agree. Fixed four-year terms is the gold standard best model we should go with. The second-best model would be fixed three-year terms, because, although you would only get an extra three or four months of performance in government, what you would remove is much of the indecision and uncertainty in the Public Service and in the private sector. There's a hidden cost that occurs all around the country, around decisions not made, and it's really hard to calculate what that cost actually is. If you can remove that and have more stability and consistency there, then on balance that is probably the more beneficial reform in the short term and the easier one to achieve because you don't have to deal with the issue of the Senate. Reform, especially when you're talking about referendums, should be incremental. Let's pick the low-hanging fruit and get that done, and then we can start talking about the four years in the longer term.

CHAIR: Cool. That's all from me. Thank you, Mr Gray. I'm sure we'll be in touch.

Mr Gray: Thank you, Chair. Thank you, committee.

CHAIR: One thing I would ask you to provide is that polling, when you receive it. Perhaps you can come back and give us a presentation on the polling if you want to unpack that. If you've been asked to provide any additional information, please forward it to the secretariat by 21 November 2025. You'll be sent a copy of the transcript of your evidence and will have an opportunity to request corrections to any transcription errors. Thanks for your time today and for your efforts.

Mr Gray: Thank you so much. I really appreciate the opportunity.

RAUE, Mr Ben, Electoral Analyst, The Tally Room

[10:32]

CHAIR: Welcome. Before we continue, is there anything you wish to add about the capacity in which you appear today?

Mr Raue: I run a website called the Tally Room. I'm an election analyst, but ultimately I'm here in a personal capacity.

CHAIR: Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now invite you to make a brief opening statement before we proceed to discussion.

Mr Raue: Thank you, and thanks to the committee for having me today. There are a few different things I've addressed in my submission, and I'm happy to take questions on them or other issues that committee members want to discuss, but I want to emphasise a few main points.

One of the major agenda items in front of the committee at the moment is the expansion of the parliament, and I think that is well overdue. It would be a good time to do it now. It has been over 40 years now. We haven't had an expansion of the parliament in my lifetime. If we were to increase the number of senators per state to 16, that would roughly take the population of electorates back to the levels they were in 2007. It's not a particularly dramatic change, but it would reduce the burden on MPs and it would increase diversity in parliament. We see, from political science, that you would not only get people elected from a greater variety of parties; you would also have an opportunity to increase the descriptive representation of people from different ethnic communities and create a greater gender balance as well. It would reduce the size of very large rural electorates, which I know is of concern for MPs who represent those big rural seats. When we talk sometimes about increasing the number of staff in an office to deal with the greater burden, I think from a democratic perspective, if you're going to increase the total volume of staff in parliament, it would be better to do that by having more MPs rather than having a greater number of staff working for the existing MPs.

I've also addressed the issues with the electoral system for the House of Representatives. We've had this electoral system for about 100 years, but it's doing an increasingly poor job of representing how people actually vote. Just 41 per cent of people in 2025 cast their primary vote for the candidate who won their seat. As recently as 2007, it was pretty common that that number was over 50 per cent. The majority of people had voted as a primary vote for their local member. That number is now much lower, and it's gotten lower particularly over the last two elections. I think we're seeing results that are less intuitive and more erratic. Three-corner contests are interesting to watch but can produce strange outcomes, and it's straining the relationship between how people vote and by whom they're represented in a way that I think weakens trust and confidence in Australian democracy.

The other thing I've addressed, which I won't speak about at length, is the concern that maybe the AEC is too cautious when the time comes to redraw electoral boundaries. We saw a number of examples in the last term. They had a particularly large burden, in terms of redistributions, where sometimes it seemed like minimising the number of voters who were moved was prioritised over creating sensible electoral boundaries. That would be a good question to raise with the AEC: is that a resource challenge? Maybe there's value in keeping people within the electorates they're already in, but if they're doing it too much and it's creating strange-looking electorates then that's something I would like to see addressed.

CHAIR: Thanks, Ben. We'll go through some questions now, and I'll kick off. I want to start on your analysis of redistributions, which I found very interesting, having gone through a big one myself. There's obviously—or perhaps—one on its way in Queensland. You're right that it is a question for the AEC, but I wouldn't mind unpacking your research here. Obviously, if parliament was expanded to 16 senators, that would be upwards of 50 seats. How would you foresee the AEC conducting a redistribution of that size and over what time period? If it were to be legislated now, would it be for an election in the 2030s rather than the next election?

Mr Raue: I've found that it's useful to separate redistributions based on whether they change the number of seats in a state or they don't, because when the number of seats is consistent you can usually do a minimal redistribution. That's probably what we're going to get in Queensland. That's what we're getting right now in the other jurisdictions. They're relatively minor. It's not surprising that not many voters are moved between electorates. Seats don't usually get created and abolished.

In terms of major redistributions, the last round was the most dramatic we have seen since 1984. Whether you go to 14 or 16 senators, or some greater number, the five mainland states, and potentially the ACT as well, would

need to be redrawn. In one sense, the changes would have to be so dramatic that probably the issue of maintaining existing boundaries or minimising the number of voters who are moved becomes irrelevant because you're starting from scratch. In one sense, it's extra important that the AEC has the time to do it properly. If you look back at 1984—and I've done a lot of analysis recently on the 1984 and 1948 redistributions, when they expanded the parliament—a lot of electorates that exist now were created in those years. I think Bennelong was created in 1949. You're creating a whole bunch of new electorates, you're making decisions about which suburbs fit together with each other and you're coming up with names—which is not the most important thing, but it's a way that we honour people—so I think it's important that we don't rush it, that we give it the time it needs. When I look at the amount of public interest in redistributions now compared to 1984, the volume of submissions is 10 times greater and would probably be even greater in such a situation. The public is more interested. There are a lot of people who comment on my blog, who have all found each other. They now have online tools, so they can make their own submissions and sometimes come up with really clever solutions to the dilemmas that the mapmakers have in front of them. So we would probably need at least a year to do it. I think there's still time to do that, but it would probably require a decision to be made pretty early next year to get the legislation through to give it time to be implemented. I'm sure politicians would like a little bit of breathing room between when those boundaries are drawn and when they face an election. In the case of the 1984 election, I believe the final boundaries were confirmed in October-November, and the election was held in December. So people probably had a hint of where things were going, but the final confirmation of what those boundaries were—there was a very short time period. But that was a choice that the Hawke government made.

CHAIR: So what happened there? Hawke was elected in 1983 and increased the parliament through legislation immediately?

Mr Raue: Yes. He was elected in early 1983, and there was a lot of legislation in that term. Most of the big electoral legislation happened in that 1983-84 term. This committee was created. The elections were in March 1983 and December 1984, but they basically went to an election as soon as the boundaries were ready. I think, probably, you would want to get on with it pretty quickly. One solution is what you suggested, which is that you could potentially legislate and deal with it in the following term.

Another reason, though, that I think there's value in doing it now—which is more of a partisan reason, but I think it's worth mentioning—is that there is a little bit of evidence that, in some of the most marginal government seats, when this has happened before, it makes things a little bit hard for a government. And I can understand how, for the current size of the federal government, they're in a position where that would be less of a problem than it was in the last term or would be in a future term. When you have a large majority, you can afford to temporarily create a position where you have marginal seats where you don't have sitting MPs defending those marginal seats. But, because the Labor government has such a large majority right now, those seats wouldn't be the ones that decide an election. Whereas, if it were a government with a slim majority, they would potentially be those seats. So, that's probably out of the scope of this committee, but I do think that's a relevant reason why this is a good time to do it: when the last election wasn't very close.

I think you want to give it at least a year to do it properly. And you would expect that, probably, there are resourcing concerns for the AEC. I think those are questions that should be asked of them, like 'Do you have the resources to do it properly, to take the submissions?' I've listed a few examples—I don't know if I listed them in here or in blog posts—like the abolition of Higgins and the decision to extend Kingsford Smith across Sydney Airport. There are a few other ones in other states where I'm less familiar with the local geography, but people who are familiar have said, 'This boundary doesn't make that much sense,' but they make sense in the context of minimising the number of voters who've been moved. And I would hope that, if this were to happen, the AEC would take it as a once-in-a-generation task that really needs to be done properly.

CHAIR: The link for population is obviously there to make the case to expand it. I feel that the public—particularly, you mentioned the burden on MPs, that's probably not one of their high priorities. What benefits to the public, in your words, would there be of more MPs?

Mr Raue: Yes, I feel like I've got a case for politicians, and I've got a case for the public. They don't have that much overlap—

CHAIR: Sure. And I think we need to make the case—

Mr Raue: but they both exist. I think, firstly, it brings politicians closer to the people. Having a larger parliament means that there are more MPs, which means there's less of a gap between you and your local MP. Frankly, sometimes I think it probably makes—a really small parliament is easier for a government to control. The leaders of the parliament—the ministers and the Prime Minister and all of that—have smaller backbenches. Backbenches tend to be—they tend to want to do stuff, and they need to be given jobs to do and things like that.

A larger parliament in some ways, I think, does create potential for the backbenchers to play a bigger role. It doesn't necessarily need to follow that you would expand the size of the ministry. I think there would be value in just having more backbenchers who have a little bit more freedom to represent their communities and to consult with the public, in terms of both not having the same strictures of being a minister and also having more time.

I think political science has also shown that, with a bigger parliament, you would have a more diverse representation. Probably you would get larger effective numbers of parties, which is an academic term. Maybe you wouldn't actually have more parties, but small parties and crossbenchers would probably do a little bit better. I think there is a genuine public concern about whether the demographic representation in parliament keeps up with the community. In terms of ethnic representation and gender representation a lot of progress has been made in the last few years, but it is a constant challenge that the sitting MPs are already there. You're not starting with a clean slate at every election. Adding 25 or 50 more seats to the House, and also a number to the Senate, does allow that potential to elect some younger people and to have some more representation from communities that are underrepresented.

There are a lot of benefits there. I would argue a larger parliament is better for democracy; a smaller parliament is one the powers within government and parliament have an easier time controlling. We see this at local government level and at state government level. Mayors and general managers like the idea of a really small council because you have a small group of people and you can keep everyone in the tent. When there is a larger, more diverse council and a larger, more diverse parliament it does allow a bit more freedom for people to take a different position and creates room for opposition.

CHAIR: I'll play devil's advocate. If I said to you, 'We don't need more MPs, we just need better ones,' what would your response be?

Mr Raue: I don't think there's a very strong link—MPs are elected for many reasons. There are many MPs who are very smart and very capable, but they are elected to represent their communities and not necessarily because they are the most talented people in the community. Electing more people would allow other people who maybe aren't at the top of the queue, who aren't the most likely to get elected to parliament. There is only so much we can do to elect better MPs. Ultimately, that's up to the community to decide who they want to elect; it's up to the parties to decide who they want to preselect. But having a larger talent pool to work from would definitely potentially help when choosing ministers and choosing frontbenchers.

It seems a little more distant at the federal level, although I still think it's relevant. But you see it a lot in local government and smaller assemblies, like Tasmania and the ACT, where for some of the governing parties almost everyone is on the front bench. They are aware that if they get more people elected, they will have more people to choose from.

That would also be true at a federal level. If you're thinking about who the best people are to be ministers, there are probably plenty of very talented people who have run for parliament and haven't been elected. And it's not because they're not talented, it's because their party didn't have a good election or they got preselected for a seat that was too difficult or they were third on their party's Senate ticket, instead of second, and the party only got two people elected. There is a limited relationship between the talent of the individual and whether they get elected.

CHAIR: Thanks, Ben.

Senator HODGINS-MAY: Hi, Ben; thank you for appearing today. I have spent many an hour on your website following some of those three-cornered contests over my lifetime. You've raised concerns about recent major redistributions and the resourcing of the AEC, flagging there were a number of electorates joined in strange ways. Melbourne taking in South Yarra instead of South Bank is one example. Obviously, there are technical questions here for the AEC, but I am really interested in your view on how such redistributions impact community interest and our democratic processes.

Mr Raue: It's a constant challenge, to be fair to the AEC, to draw electorates that represent communities that are of equal size, because communities aren't evenly divided. They will always have to make tricky choices at some point. There are always going to be some electorates—I think of places like Hughes, although I think Hughes got it particularly bad at the last election—where you have to combine areas that don't have that much to do with each other.

There is a thing where sometimes an electorate makes sense in the current context, but three or six years later, when you need to redraw it, the boundaries that make the most sense might require more significant redrawing than an alternative that is available. And so in the case of the seat of Melbourne, I think the seat of Higgins was partly chosen to be abolished because it was the lowest enrolment and it required the fewest voters to be moved. There was a bit of an automatic thing with all of the surrounding electorates sucking up all the bits of Higgins.

I'm more familiar with Sydney, with Kingsford Smith for example. There is a local council in Sydney called Bayside, which covers both sides of Sydney airport. At the time it was created it was quite controversial because the two separate councils didn't really have that much to do with each other. It's quite difficult to actually travel between them, unless you go via water. Sydney airport is this enormous barrier that sits in the middle of it. But the advantage of extending Kingsford Smith along the bay was that it meant far fewer voters in Sydney, Wentworth and Grayndler—those seats in particular—had to be moved. A more sensible choice would have been for Kingsford Smith to expand into Sydney, Sydney to expand into Grayndler and Grayndler to expand into Barton, but it would have involved a lot more voters moving.

I believe the AEC needs to communicate with residents when they're moved into a new electorate to let them know that they're now enrolled in a different electorate, and the rolls need to be updated. This is partly why I'm saying there are questions here about the reasons why these decisions are made. Ultimately, the commission is independent, but they follow criteria that is set by the parliament through legislation. There is criteria about maintaining existing boundaries, but I would argue that's not necessarily the same thing as minimising the number of voters who get moved. Once a boundary is breached—the question of whether you add 5,000 voters or 10,000 voters—either way, the existing boundary no longer exists.

One thing I have noticed is that, when you just look at major redistributions, the larger the scale of the job in front of the AEC, the fewer voters they move. In the case of 2025, only 11 per cent of voters were moved. Whereas, when they've had a smaller job to do, they have often moved a lot more voters. That strikes me as suggesting that this isn't just an independent decision being made; it reflects the scale of the job. I know that in the last parliament as well there were issues with the population projections from the ABS for Victoria and Western Australia being wrong, and they had to be updated. I think that probably did cause delays. It certainly affected the public consultation process.

I don't have personal views about what the best boundaries are for inner-city Melbourne. But I talked to people who live in that area, and a lot of people expressed the view that, even if you agree that Melbourne had to move south of the river, it's quite an odd shape. It leaves Macnamara in quite an odd shape too, compared to the choice of moving it into South Bank instead.

Senator HODGINS-MAY: Do you have specific reforms or measures that you'd recommend the government or AEC implement to ensure future redistributions more accurately reflect population growth and demographic changes?

Mr Raue: No. I'm a supporter of proportional representation, which would involve multimember electorates, and, thus, the specific boundaries would matter less. But, short of that, I think the rules we have are reasonably good. They are very tight about ensuring that population numbers are equal, and I think that's a good thing. This is the reason why I'm expressing the concern the way I am. It's kind of that the issues seem to be happening in the black box of the committee proceedings, which are, for good reasons, not something that MPs directly have control over. Potentially, there could be changes to the criteria to clarify that, while it's a good thing to maintain existing boundaries, perhaps that should be de-prioritised in favour of other changes.

I think the first question is: are there sufficient resources to do this job? Because I think the job is getting harder. The population is bigger. There are more people in the country, and there are more people who want to participate in the process, so the number of submissions and the number of people who make detailed, coherent submissions are also greater. It's one thing for someone to go, 'I just don't want this suburb moved into this other suburb,' but it's another to have people who are actually giving coherent suggestions for what can happen to a lot of seats. That must create a big burden for the AEC in terms of how they manage those.

Senator HODGINS-MAY: I was going to ask your thoughts about whether it does come down to greater resourcing for the AEC, but I think you've touched on that being a consideration. Just on the point of proportional representation, what do you think the risks are of not formally examining proportional representation, as you've recommended, and just maintaining the status quo?

Mr Raue: We know that the existing system we have now leads to governments that get elected with a lot more seats than their share of the vote. In addition to that, it produce outcomes where in individual seats like in the case of Macnamara, which is a famous one, candidates are elected on a really low vote, and small changes in the votes can produce quite unintuitive results. Without saying any particular result is a good one or a bad one, an example I often give is the Greens winning the seat of Ryan and losing the seat of Griffith. It didn't really have anything to do with the number of votes the Greens won in those seats, but it had to do with the relative strength of the Labor Party—that when Labor comes third, the Greens win a seat. I think, in terms of the total number of seats that parties get elected to, it can produce quite strange outcomes. I think that, when you look at other countries that use preferential voting, where the vote totals are much more dispersed, you get much more erratic

outcomes, where a party can win an enormous share of the vote, suffer a relatively small loss of votes and lose an enormous number of seats. None of the changes have very much to do with how people are voting. There was another example I was going to give, but it slipped my mind. Yes, that's probably a good place to leave it.

Senator HODGINS-MAY: No worries. If it comes back to you, feel free to drop in. My final question is on fixed-term elections. Although it's not mentioned in your submission, I was wondering if you had an opinion on fixed-term elections and if you think there could be any benefits to introducing them federally.

Mr Raue: I would treat the question of fixed terms and four-year terms separately. When it comes to fixed terms, I am a little bit—I question the figure of two years, seven months as an average. I think that's been taken over a long period of time that includes terms in the 1970s and 1980s that were a long time ago. The Whitlam government famously lasted three years, and there were multiple elections in that time. When you look at the more recent period, the average is higher, but, more importantly than that, there have actually been only one or two elections—I'm thinking of 1998 and 2016—that were substantially early. The rest of them might be a little bit early, but the average ends up averaging out. The 2010 election was early, but then the 2013 election was held a little bit later, and that meant there have been a number of terms during that time period where the term has been over three years, actually. So I would argue it's not that we're consistently having parliamentary terms that are significantly less than three years. I think the lived experience of members of parliament is that that's not what happens; most terms roughly go to three years. It's that most terms go to about three years, but we don't know the precise date. It's very rare. In my adult life—or not even in my adult life. In 1998, John Howard called a very early election. That has not happened since. It's very unusual. I don't think it's a likely outcome.

I would say that the biggest concern for me about fixed terms is the amount of time we waste speculating, but I would argue the solution to that is not necessarily legislative or even constitutional. The Prime Minister could come out tomorrow and tell us what date in 2028 he's going to call the election. I'm not suggesting he has to do it that far in advance, but the last witness was talking about New Zealand. In New Zealand they actually started doing this because the they had a rugby world cup and they wanted to make sure the election didn't clash with it. They liked it so much, they have kept doing it. At the start of the year, when the Prime Minister comes back from their summer holidays, they announce the date of the election. It's usually in September or October, but people know at the end of January, before they come back, that that's the date. It's not written in law anywhere. It could change. But the Prime Minister has effectively made a political promise to call an election for a particular date, and people get on with it. To be honest, I would just like the Prime Minister to do that. Maybe not this far in advance, but next year or in early 2027, I think, the Prime Minister could say: 'This is our plan. We're going to call an election on this date. Please stop asking me questions about this.' I think that would mostly solve it. It would deal with the problems—I know Kevin Bonham talked about this earlier, but I was in the car at the time, so I couldn't hear it, but I heard later that he was talking about the issues around when a government falls and how it's necessary to call an early election. Of course, there are also double dissolutions. If we were to have legislated or constitutional fixed terms, you would need to have a bunch of exceptions anyway, and I would argue that the problem is less that we actually have early elections and more that we go through this rigmarole for a couple of months leading up to the election where we all know roughly when the election is going to be but the Prime Minister holds close to the chest what the exact date is going to be. I don't really even think the governing parties get much of an advantage out of it. But our lives would be made a lot easier if people just came out and said, 'This is what the date of the election is going to be.'

Senator HODGINS-MAY: That sounds pretty straightforward. Thank you very much for your time here today and for your work on the Tally Room.

CHAIR: Senator Mulholland.

Senator MULHOLLAND: I just want to come back to the recommendation in your submission about proportional representation in the House of Representatives. I know that you've cited some examples there. If we take it back to basic principles about the House of Representatives versus the Senate, there are two very distinct voting processes in place for two very distinct reasons: that one is a house of review, and we do have people who get elected in a house of review based off proportional representation with very low vote bases to provide diversity of views and diversity of parties, but the House of Representatives is where the government is formed. We have cases throughout the last 20 years where more voices and diversity of views creates instability for the public, and that is not necessarily a good thing when we're talking about trying to create stability for government and stability for the business community. I'm trying to rationalise in my mind why we would want to see proportional representation in the lower house, and I don't necessarily accept the notion that not everybody in an electorate voted for a particular member of parliament, because we have preferential voting and people are asked. I don't think we can just say, 'Not everyone put number one against a particular MP's name.' People are asked to

preference, to say, 'If my first person doesn't get across the line, who would I like second or third or fourth or fifth'—all the way through to 12th in some electorates. People are asked to do that, to preference. In knowing that, perhaps, their first candidate may not go, they're asked deliberately to make a second preference. I'm trying to rationalise why that recommendation would be a good thing in your mind?

Mr Raue: I do think there is value in the House and the Senate being different. There's a German political scientist who studied this and talks about a semiparliamentary system where, effectively, the lower house functions as a bit of an electoral college for a government and then the Senate functions as a bit more of an independent legislature. I would argue that there are ways to maintain a difference while having proportionality. For example, I'm not an advocate for a very high magnitude, low threshold, pure PR system of the kind you see in the Netherlands or South Africa or Israel. I think there's a lot of political science evidence that, when you go for low-magnitude—by which I mean the number of MPs you elect in each electorate—PR systems, you get the best of both worlds. You get much more accurate representation and you get a lot more involvement in government, but you have relatively coherent governments. You might have governments of two parties rather than one party, but you don't have seven- or 12-party governments or whatever you see in the Netherlands, for example. So I think there is a middle ground where you can achieve a lot of those improvements. I would argue, though, that you can have cohesive governments where parties come together and they form coalitions or they form agreements and can work together. I think we have a kind of culture in Australia where we're not used to that and we are used to the way that the House of Representatives and the Senate work differently. I would also say that, while the Senate does create a representative opportunity for the smaller parties, government is a very big part of Australian democracy, and that part is limited now in that small parties aren't able to participate in that.

You made a second point there about preferential voting and representation. I think preferential voting is the best way to elect one person. If you're electing one person—if you're electing a mayor or something like that—I do think it's the best way to do, it because you do get the best person for that particular electorate. But I do think the first primary vote that people cast is relevant. Take the example of the last election, where the Labor government got about 60 per cent of the seats and thirtysomething per cent of the votes. There absolutely is a share of the community that preferred Labor over the coalition, right? About 20 per cent of the electorate gave Labor a two-party preferred preference but didn't vote for the Labor Party as the No. 1 preference. But I do think those people are expressing a different preference and, when you add up all the results across the country, there is a representation gap there. For that 12 per cent of people who vote for the Greens, if that's their only choice, yes, they do prefer that Labor MP in their area to a Liberal MP, but I don't think that's their preferred outcome ultimately, and I do think it's relevant how people cast their first preference even though we have a preferential system.

I think there are ways to design proportional systems so that they are relatively stable. A lot of countries do. They have lower houses that work like that. To be honest, I think that, if you were to expand the parliament, you would be lowering the threshold to get elected to the Senate, and so I think there's value in having a bit of a system where you have an upper house that's a little bit more like the upper houses you see in New South Wales or Western Australia, where parties that are even smaller than the current Senate parties get elected. You have the Legalise Cannabis Party, the Animal Justice Party or equivalent parties on the right, and they get one or two seats here or there, so then you have maybe four or five parties in the lower house. You have governments of two parties, probably—maybe three if you count the Liberals and Nationals separately—that would be able to be coherent, be accountable but be a better reflection of how people actually vote. I know it's controversial. I don't think it's about to happen, but I think that would be a better representation of people's genuine intentions when they vote.

Senator MULHOLLAND: I'm still struggling with it. Even in that example of 12 per cent of people voting for the Greens as their first preference, they're still not going to tip the seat; 12 per cent of people voting in a lower house seat are not going to win that seat for a candidate, so those votes then go nowhere. Under a preferential system they're asked to then answer, 'If your first preference doesn't get across the line, what is the second-least-worst option for you?' and their votes are captured—same on the right side of the equation. I still struggle with that in the lower house.

I was having a look at the numbers, and, regardless of the preferential voting system that we have here in the lower house, we have still seen a rise in the number of Independents. We had two elected in 2016, three elected in 2019 and 10 elected in 2022 and 2025, so we are still seeing a surge of Independents in the lower house despite the voting system. The Greens had three in 2019 and four in 2022, and they dropped to one in 2025. I think that was probably a result of the politics that were going on around housing, to be honest—not to make a political statement.

We are seeing a trend towards more minor parties into the lower house and more Independents as well. We've also seen the major parties—well, one major party—elect more women than ever before and more culturally and linguistically diverse people. I don't necessarily agree with the recommendation that we need to have proportional representation in the House. I think that's why we've got it in the Senate. I would be really concerned that we're going to move to one side or the other when the House is about trying to push towards the centre and get really good stable government and really good outcomes for the people.

I struggle with this notion that, just because 12 per cent of people want a particular candidate, voting under a proportional system would somehow a better option. They are getting that outcome in the Senate, and we're seeing that play out at the moment across a number of pieces of legislation with minor parties and Independents are having a key role. It's not that people aren't going to get that outcome; they are really seeing that outcome come to fruition in the Senate.

Mr Raue: I'm not advocating for first past the post, to be clear. I think a majority of the community absolutely preferred to have a Labor prime minister than a coalition prime minister, but I do think a substantial part of those people who voted for Labor on the two PP preferred someone else. While there are other people getting elected to parliament, Labor have this enormous majority that has very little to do with how many people actually voted for them. A lot of that about '12 per cent not being enough to change a seat' is based on the idea that it's all about electing the one person. Yes, that is the way the House of Representatives works and that's how it has worked for all of our lives, and we all grew up learning about it that way, but I don't necessarily think that that is a virtue in itself. There are ways to design PR systems to not be chaotic and to ensure that voters have accountability. I do have concern that, if you were to move to one of those extremely proportional systems where you have five parties in a government, people wouldn't know who to vote for. They don't know how to punish a party if policies aren't passed or whatever. I think you can maintain that when you have two-party governments or three-party governments or things like that.

As you say, the rise in the Independents has been, I would argue, an adaptation to the voting system rather than necessarily a reflection of people's genuine preference. There are a lot of people who would prefer to vote for Labor or the Greens but who vote for the Independents in those seats because they are able to win in that seat, and it is the creation of those single-member contests, where there are enormous numbers of people living in seats that are safe for the other side, and they don't have anyone to represent them. If we had a more proportional system maybe there would be a centrist, blue-green party that would reflect some of the teal voters. But I think people would also vote sincerely in quite different ways.

It would change how people vote, but, starting with what we have, people are voting now—if you look at how people vote now and at how people voted 20 years ago, it's changed quite a lot, but the make-up of the government in the lower house hasn't changed very much at all. Yes, the Liberal Party has lost a lot of seats to Independents now, but I don't think that that change in how people have voted has been reflected. I think it is important that, when people change their vote, it is reflected in the system.

Senator MULHOLLAND: Thank you, Chair.

CHAIR: Mr Neumann.

Mr NEUMANN: Thanks very much, Ben. Have you done research into the background of the increases during the 1949 and 1984 changes? Have you done any background on what led people, prime ministers, to do that? Ben Chifley did it, and then, after winning in 1946, he lost in 1949—there were other factors. And Hawke didn't do quite so well proportionately in 1984 as he did in 1983. I'm interested in your analysis of the background.

Mr Raue: I'm planning a podcast with some historians—one whose focus is more on the eighties and one whose focus is on the forties—to talk about the motivations and where they came from, because that's less my area of expertise. Clearly, there was this pressure that the parliament hadn't grown while the population was growing. Other countries that don't have the nexus often do have parliaments that grow more gradually. There's a fascinating book I just finished reading about the process of them expanding the US House of Representatives. Basically, every 10 years when the numbers changed they expanded the House. Basically they did that every 10 years for 150 years until they made a decision at some point to fix the number.

In one sense, in Australia, if we didn't have the nexus we could probably add a couple of seats here or a couple of seats there, and it wouldn't have to be this enormous growth. In 1949 in particular, there was a two-thirds increase to the size of the House of Representatives; it went from 74 to 121. It was an enormous increase, and I think it did reflect that the scale of federal government had increased and the size of the population had increased enormously. It had been almost 50 years. To be honest, I think it's often seen as something that people aren't

going to like and something that is not the priority, and eventually the pressure builds up and up until they get to a point where they need to do it.

The Chifley government was defeated at that election. The Hawke government went backwards a little bit in 1984, but they probably would have gone backwards anyway. The 1983 election was a very good election for Labor, on a similar scale, in terms of seats, to the 2025 election.

I have been doing research into, in the marginal seats in those elections, what the swing was in seats where there was a Labor MP or coalition MP or no MP. There is a natural inclination that, when a bunch of extra seats get created, when an MP has a choice of two seats they can pick from, they pick the safest seat of course. A lot more of the open seats end up being marginal seats. That did have an effect on those elections, and I think it had a minor effect in the defeat of the Chifley government.

There is a paper from 1978 by Colin Hughes—who later went on to be an electoral commissioner—about the 1948 redistribution, and he argues that it wasn't the primary impact on the Chifley government. There had been this story for a long time that selfish Labor backbenchers had chosen the safer seats and had sacrificed the party, and then they lost the election. He goes through it and his case was that it might have cost them a couple of seats, but it wasn't the main thing that cost them the election.

In the case of Hawke in 1983, he picked the right time to do it. It might have cost them a couple of seats, but he had enough of a buffer to do that at that time. It's outside the scope of this committee to consider considerations like that, but I do think that a time when the margins aren't super close is a good time to deal with it, if you accept that it's going to have to be done at some point.

Mr NEUMANN: You've mentioned comparisons, not just in your paper, and you say that we're ranked sixth out of 37 in terms of total population to the members of the House of Representatives. Can you think of another one or two countries that we would be comparable to? I think you talked about 24 to 48 extra seats. Can you think of a few comparisons? You give a few in terms of Chile, the Netherlands and Belgium, which have got the same size as us but much smaller populations—then you give Poland and, I think, Canada, which are larger. I'm interested in any comparisons, and why you get to the figure of 24.

Mr Raue: In terms of countries that are maybe culturally similar or have a similar heritage, Canada and the UK are the best examples. We're not exactly the same with regard to population, which makes it tricky, because you don't expect average enrolment size to stay the same no matter the size of the country. It's understandable that electoral districts in the US are much bigger—even though they probably should be smaller than they are now. The population of Canada is not that much larger than ours, but their House of Commons is more than twice the size of the House of Representatives. In the case of the UK, the House of Commons is more than four times the size of the House of Representatives but their population is nowhere near four times the size of ours. Those are both examples of countries that do have, despite my arguments of PR—we have a single-member electorate system, like Canada and the UK, where you have one MP representing a local area, but those local areas have much smaller populations than we have in Australia. I do think they're probably the best examples to use. I picked those countries in my submission because they were the ones that were the closest to us in scale, but I know that there are other considerations around federal systems, upper houses and all that to consider as well.

Mr NEUMANN: State parliaments have increased the size of their legislative assemblies as populations have increased—I know Queensland and New South Wales have. Have you done any analysis in relation to the increase in the size of state and territory parliaments?

Mr Raue: Yes. Usually, when it happens, it's gradual, or they don't grow much. I would argue a lot of state parliaments haven't grown enough.

In the case of New South Wales, they had a 99-seat assembly, and then they increased it to 109 seats for one term. The new government got elected, they reduced it back to 99, and then the Carr government reduced it to 93. So, actually, compared to when I was quite young, the New South Wales assembly has 16 fewer seats than it did then. I would argue—and I have made submissions to the New South Wales JSCEM arguing this—that they should also expand their parliament.

You can make gradual increases, and we did see that at the last Queensland redistribution—four extra seats were added in the Legislative Assembly. That is probably an ideal way to do it, but, unfortunately, because of the way that the Senate size dictates the size of the House, we don't really have any option except to do it in large clumps rather than doing it in a gradual trickle. There are some states, like Victoria, where the size of the parliament is effectively embedded in the constitution. I know Western Australia have had a few small increases in the size of their parliament. Their constitution prohibits them from shrinking the size of the parliament but allows them to increase the size of the parliament. They've usually done it in small increases, so I think the

changes that have been seen there are much more subtle, because you're not seeing a huge number of new electorates get created. When the size of a parliament is stable, you would expect slow-growing areas to lose electorates and fast-growing areas to gain electorates. When you have small increases like that, you basically just allow the slow-growing areas to not lose any electorates while the large, growing areas get their fair increase.

Mr NEUMANN: Earlier, you alluded to the tendency of the AEC to make minimal changes on redistributions. I don't think that's what the legislative requirement is, but there seems to be a tendency, which you identified, for the AEC to do this. I reference my home state of Queensland, where in 2018 there was such minimalist change that, in my seat—in Blair, it was—almost the biggest change took place, with part of Brisbane being allocated to my Ipswich based seat. It was a very strange redistribution. Can you comment a bit further on that. Why is the AEC doing that? Why are they making such minimal changes?

Mr Raue: Well, like I said, it's a black box, because it's an independent committee—

Mr NEUMANN: Get into the black box for us, Ben!

Mr Raue: Well, I don't know! This is why I think it is worth asking questions. I am a very strong advocate of it being an independent process. This is far superior to back when parliament either drew—we've never really had parliament drawing the boundaries, but we've had parliament as the final arbiter of those boundaries, which is no longer the case. But I do think it's reasonable to ask questions in general about the principle, with the AEC, and why that's happenin I do advance an argument in my submission and on my blog that it seems to be more of a problem when the job is bigger. I do think there's potentially a workload issue or an issue with all of the knock-on effects that come with moving voters from one seat to another that gives them an incentive to want to keep things stable. I have wondered sometimes: Is this a thing that MPs like, not having their boundaries changed too much? I don't know what the committee members think, but, after talking to a bunch of people, my experience is that is not really true. Sometimes MPs like their boundaries left alone and sometimes they like them changed. There is not really one consistent position. I think it is potentially a workload or a cultural issue that this is the way they do things; they don't want to make changes greater than they need to.

There was a lot of discussion in New South Wales before the last redistribution. A lot of the people on my website who are looking at the numbers and doing the calculations were saying it makes sense to abolish the seat of Grayndler, which is the Prime Minister's seat. We all know the Prime Minister would have been fine if his seat was abolished. He would have found somewhere. I am sure he would have been okay. But it would have been a controversial thing for the AEC thing to do. I talked to people, asking, 'Would the AEC go through with doing that, if the numbers added up? If the smartest decision was to abolish the Prime Minister's seat, would they do it?' I heard conflicting opinions from people about whether they would be willing to go through with doing it. If they accepted it was the right thing to do, would they do it? It is one of those subtle things. It is not a partisan thing about advantaging the Labor Party but a decision like that would be considered controversial; it would get a lot of attention. The independent commission, which is not quite the same thing as the AEC it is worth emphasising—these are state and federal senior public servants who take on this role—are not doing it to create controversy. I think that creates a natural small-seat conservatism of keeping things the way they are.

Mr NEUMANN: Thank you. Thanks, Chair.

Mr BURNELL: I only have a couple. First of all, thank you for coming and providing evidence. It would be remiss of me not to acknowledge that one of my staff is an eager Patreon member of your podcast and website. I am sure he would like me to say thank you for everything you do. More importantly, with the suggestion around the expansion of seats, instead of talking about numbers of seats to be expanded by, what's your take on the ideal number of voters within each division that we should be aiming for? Because I would have thought getting it down to a set number of voters is a higher priority than an actual number of specific seats per se.

Mr Raue: I haven't looked at that so much. The problem with that approach is you make a decision, you get the number down to a specific number, and then the very next day the numbers start going up again because more people turn 18, more people become citizens. The very moment you make this change you will immediately start to get electorates getting bigger again. I don't know if the graph printed properly. I've got issues with colour ink in my printer.

Mr BURNELL: The reason I ask that question is you suggested to add roughly 24 to 48 seats in the House of Reps. If you do an expansion of 48 seats based on the voter numbers as of the 2025 election, that would bring you down to 91,000 or thereabouts voters per seat, which is the 2010 figures roughly.

Mr Raue: Yes.

Mr BURNELL: It was only 15 years ago. We have to get comfortable with the idea that we are going to have larger electorates than we did back in '84.

Mr Raue: Absolutely. This is not a solution that will completely undo the impacts of population growth. As Australia becomes a bigger country, the average size of electorates will grow. They talk about the law of political science; it is more an observation of a trend that you see. There is a relationship between where you cube the number of seats and that roughly lines up with the size of the population, which does imply that as a population gets bigger you don't expect a proportionate increase in the number of seats. So yes, the population will grow.

Part of the problem we also have is that you can't make a decision to add 30 seats. The options in front of you are 24, 48 or 72 because of the fact you have to add a certain number of senators and that creates a knock-on effect. So short of creating new states or doing radical things like that, there is not a lot of options on the table. That is partly why I am advocating for the 16 senators because, as you said, it doesn't rewind the clock that much. When I was looking at my numbers I was looking at population figures, not electors. It was coming out closer to 2007 to me but, by the time of the next election, it will probably be closer to the 2010 numbers, so that is not a total unwinding.

I also use that to emphasise that the size of those electorates after that expansion are not going to be unfamiliar. It is not like we're going to be quadrupling the number of seats or creating electorates that look radically different to what people are used to. Some of the longer serving MPs will have experienced electorates of the size we would be creating by doing this. That is my point here. I think you could set yourself a target of a particular population but, unfortunately, the parliament doesn't have that many options in front of it because you need to ratchet it because of the nexus. You could go for the minimal increase of 24, but I would argue that, particularly if this is a process that doesn't happen very often,—

Mr BURNELL: Go big or go home.

Mr Raue: it is a big political impact. Do you want to go through it again in 10 or 20 years or do you think it probably won't happen again for 30 or 40 years? In that case, not many people who are in the parliament now will still be there then. If that is the case, maybe you should build in future-proofing by going for the 16 senators and a parliament of around 200. That is a nice round number. It probably won't be a precise round number. That is partly why I am doing that. I don't think you can set yourself a target, because the population of Australia is a moving target and it is going to change the moment you set a target.

Mr BURNELL: Thank you for that answer. Lastly—it might be more of an observation, I'm not sure—you spoke about more diversity through the House of Reps being elected on the scale of a bigger pool of representation. But isn't it ultimately two factors that go into that: first, it is driven by the parties and individuals that put their hand up to represent certain electorates around the country; and second, getting the endorsement by the voting public? I would argue that the Australian Labor Party is getting it right and getting a very broad range of diverse backgrounds into parliament, as we see on our benches in the House of Representatives and in the Senate. I would say that policy setting potentially helps get diversification within our parliament rather than just a scatter gun approach.

Mr Raue: Yes. It absolutely is relevant. Parties setting quotas, making an effort to reach out and find people is very relevant and very important. I don't want to dismiss that. I'm reading a paper at the moment about all the steps that parties in Norway took to get women's representation up early on. Structures matter too. The paper I am reading right now is talking about how all of the things they would do to add more women to parliament would then founder on the fact that they would also choose mayors a lot to get elected to parliament, and most of the mayors were men, so they then had to work around those structures.

In the case of Australia, the Labor Party has done a lot better with gender representation. Obviously, the Greens have a lot of women in parliament too. Labor has, particularly over the last couple of terms, had a lot more people elected who aren't white. But, if you compare the House of Representatives to the Senate, the Senate is basically gender balanced now is my understanding. The parties of the left have almost overcompensated to make up for the fact that the parties of the right are still quite male dominated. The Senate is roughly even, even though there's probably no particular political party that's fifty-fifty in terms of gender representation; they all cancel each other out.

I would say that changing the structure would help. It would have been easier for the Labor Party to do that work if they had a bunch of open seats who didn't have sitting MPs. Part of the thing that took the ALP so long was there were existing MPs in seats who—no shade on them as MPs—wanted to stick around, wanted to have their career and they wanted to finish the job they were doing. Those people were more likely to be men and more likely to be white, so it has taken time to work on that. Having extra seats as a one-off exercise would help but also having more seats in parliament would make it easier to do that job in the future. I am not meaning to say that other stuff doesn't matter. I think parties do have to make those efforts, and parties are motivated to make those efforts for various reasons.

When I talk about diversity in parliament I am talking about descriptive representation, which is what we're talking about right now—gender, ethnicity, age. Getting more younger people or people who don't own their own home who may not be as well off into parliament would be relevant. There would be a list of things that you could consider as factors there.

Political science around the world shows that not only how proportional your parliament is but also the size of the chamber—the number of seats you elect—has an impact on the number of parties that get elected. If you create smaller electorates, it means you need less of a base to be elected to parliament. You can think of that not only in terms of ethnic diversity, where there would probably be seats where a particular ethnic group makes up a larger share of the local electorate and thus makes it easier to elect someone who reflects them, but also for partisan interest, where they are more likely to be dominant in that particular community and so be represented. When I talk about greater diversity in parliament, I'm talking about all that. I'm not saying that work has not been done on that already.

Mr BURNELL: Okay, thank you. That's it from me.

CHAIR: Thanks, Ben. If you have been asked to provide any additional information, would you please forward it to the secretariat by Friday 21 November. You will be sent a copy of the transcript of your evidence and will have an opportunity to request corrections to any transcription errors.

Proceedings suspended from 11:31 to 11:50

PARRY, Mr Jonathan, Deputy Convenor, Australian Greens [by video link]

CHAIR: Welcome. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now invite you to make a brief opening statement, before we proceed to discussion.

Mr Parry: Thank you to the committee for the invitation. Firstly, I wish to commend the submission by the Australian Greens to this inquiry. Some key points I want to touch on are electoral reform and missed opportunities that have occurred previously. I want to talk about misinformation and behaviour and the influx of concerns that we've had, especially at the last election. I want to talk about engagement, including the strengthening of civics education and accessibility, and I also wish to speak to representation—or, rather, I wish to highlight those key points, and that includes increasing diversity, both in the ages of people who are represented in parliament and also by ensuring the parliament better reflects the population.

CHAIR: Did you want to expand on those points?

Mr Parry: Indeed. In terms of electoral reform, I think the reforms that were passed earlier this year were a real missed opportunity to ensure fairness within both the electoral system and also the donation rules especially. The fact that those reforms weren't provided to this committee is, again, a missed opportunity. When I speak about donation rules, I'm talking about the undue influence from wealthy donors. The money in politics is a slippery slope, jeopardising the democratic processes that we have in Australia, which essentially could be world class or are world class. I think reforms are needed to close loopholes and improve transparency. In many ways, what I'm trying to get at is that a lot of this is connected. The lack of requirements for truth in political advertising, for example, creates an environment where those within the political process feel they can get away with more. It enables a culture where people can say or do things as part of the electoral process that undermine it.

I talked about behaviour and misinformation, and that was especially seen at the polling booths in this last election. I can speak from personal experience that the behaviour and the aggression at polling booths was markedly different this time around than at the last federal election. The voting population sees that, and that infects and affects how they view the political process and democracy more generally.

I think that, in terms of truth in political advertising, lacking that kind of safeguard means that voters aren't given reliable and accurate information to make informed decisions. In many ways that also ties into civics education more generally and how we've seen a bit of a backslide in terms of people's engagement with the political more generally. I think that federal truth-in-advertising laws need to be prioritised for consideration.

In terms of engagement, improving participation and reducing informal voting are always key. I think that the nature of the Australian democratic process, especially in federal elections, could be held up as a standard, but that doesn't mean that it shouldn't be constantly interrogated and considered as to how it can be better. I think that accessibility is also a concern. That's for people both with different needs in terms of coming to the polling booth and also in remote and rural locations. We've seen increases in participation by First Nations Australians, but that can always be improved.

I also think that section 44 restrictions should be reviewed and looked at, especially consideration for participation, because the submission is that section 44 doesn't reflect modern Australia. You will note from the submission that consideration of the voting age or the age limit is part of our consideration. We've seen, in lower voting reforms in other jurisdictions—Austria, Scotland, some parts of Germany—greater democratic participation, so I think that should be part of the consideration as well.

CHAIR: Cool. We might go to some questions. In regard to money in politics, do the Greens support the concept of spending restrictions at elections? There's obviously an amount that's gone through. The general concept of reducing the amount of big money in politics—is that something you support?

Mr Parry: Absolutely, indeed.

CHAIR: Why's that?

Mr Parry: The submission is that money in politics undermines how it works. I think the perception of trading money for favours or clientelism is really ripe and needs to be cut off at any possible opportunity. Our longstanding position is that donations should be banned from industries with a track record of seeking political influence—fossil fuels, banking, pharmaceuticals, defence, alcohol, tobacco, gambling and property development. It's essential to both level the playing field and remove both the real and perceived influence of money in politics.

CHAIR: Notwithstanding the industries, but just to clarify, someone like Gina Rinehart or Clive Palmer or, using an American example, Elon Musk, coming in and dumping hundreds of millions of dollars on the electoral process—that's something that the Greens are completely opposed to?

Mr Parry: Completely against—absolutely. For the record.

CHAIR: Understood. And I think that's more or less captured in the reforms that have gone through. But what negative influence do you feel unlimited spending would have on elections and individual electorates?

Mr Parry: We've seen—and again, I can speak from personal experience—the influx of money and for-profit entities seeking to influence decision-making or seeking to influence election outcomes for the purpose of bettering themselves or benefiting themselves. I think that the capture of the election process by large businesses, those with a lot of money or those seeking to funnel or fuel money into the election process undermines the whole system.

On your point, Chair, about the American example, what we have the great benefit of is the fact that voting is compulsory, and that does provide a bit of a mechanism through which money doesn't become as large a factor in convincing people to go and vote. But that doesn't mean that we don't need to exercise constant vigilance against it.

CHAIR: I will move on to your comments about aggressive and threatening behaviour. From your personal experience, but also from the perspective of the Greens, did the Greens have a mechanism of tracking any complaints of your volunteers or your candidates? Did the Greens lodge any official complaints with the AEC? If so, how were those complaints received and acted upon?

Mr Parry: Our submission isn't necessarily in relation to concerns with the AEC—certainly not. I suppose it speaks to the culture that allows that to happen. I think that seeing the filming of volunteers of every political persuasion, the targeting of younger people, including young women, vexatious complaints to the AEC as a mechanism or tool to influence outcomes, and the intentionally antagonistic behaviour of some actors—I'll speak plainly—turn people off and make people say: 'Why should I care? Why should I be interested in how important the democratic process is when a hostile environment is created where people think, "Oh, I have to go and vote; what a pain," or, "What an imposition"?' The Greens' submission is that it's more about all of these other things that create the culture that allows that to thrive and fosters that thinking that you can get away with it, essentially.

CHAIR: The AEC identified that they had to reach out to 130 individuals or groups that were involved in the political process. Some have registered as third parties; some are still back and forth. From your personal experience and from the Greens' experience, would you say it was that increased involvement of third parties that led to some of this—either being a third party openly or being a third party by association with a major party? Was it that extra involvement that kind of tipped the scales in 2025?

Mr Parry: It is definitely not the case that we are seeking to decrease the involvement of third parties. It's part of democratic participation—informing voters. But part of the issue is misinformation and disinformation—so truth in political advertising. That currently doesn't exist within the Australian federal electoral regime. We've seen other jurisdictions—for example, South Australia—where that has been put in. I think it's more the fostering of the culture that provides actors—third parties, political parties, volunteers or whoever—with a mechanism to engage in the process in a way that undermines it. I think that that comes down to truth in political advertising and also, as I said, the influence of money in politics. But I am certainly not seeking to curb third parties more generally. It's more about: what are the rules, and is it the case that people are working within the rules but the rules need to be better?

CHAIR: Your submission opposes the cap on the number of volunteers and the caps on material at booths—signs, paraphernalia and so on. But we've received significant evidence that suggests that large volumes of material intimidated voters and discouraged them from engaging in the process. What would your solution be to restore a better culture around polling booths and moderate that behaviour a little bit more?

Mr Parry: Everything that I've said so far. I think it's about the money—the money influence, or the money story—and its influence on the political process, as well as the misinformation and disinformation. There needs to be truth in political advertising. I've also talked about the representation issue—I mentioned it right at the beginning—which is about who we're seeing represent Australian society in parliament. I think the reforms in the Greens's submission in relation to section 44—section 44 needs to be looked at to ensure that it's a better reflection of the population in parliament.

I hesitate to speak in platitudes, but there is a connectedness of it all in terms of disinformation or misinformation or the lack of truth or the lack of a requirement for truth in advertising related to the political

process, as well as the influence of money. By curbing those, I think we'll see a tempering or a reduction in the sort of behaviour that was reflected in the last election.

CHAIR: You call for the AEC to remain an administrator, not an arbitrator, of behaviour. Yet—and I think this is something this committee will really need to consider, because you and the public want to see better behaviour at booths—if someone does throw in new rules and they are breached, who, in your opinion, should enforce that? And what mechanisms do we need to put in place for better behaviour and to make the voting experience better?

Mr Parry: Our submission doesn't go to that. I think that's a really important and critical question for the committee. I have a personal opinion, but it's not captured in our submission this time.

CHAIR: You're not offering up any solutions?

Mr Parry: In our submission, the mechanisms to prevent the sort of behaviour that we've seen relate to donations reform—the money influence in politics—and truth in political advertising.

Senator HODGINS-MAY: Moving on to the lowering of the voting age, which I noticed in the submission, can you speak to what you think the benefits might be of engaging younger Australians in federal elections.

Mr Parry: From our perspective, lowering the voting age strengthens democracy in the long term. It's about creating a benefit into the future or, rather, preventing issues longer term. Research from countries such as Austria, Scotland and parts of Germany, as I said before, shows that 16- and 17-year-olds tend to vote at similar or even higher rates than those who are new to voting—18- to 24-year-olds. One reason is that younger people are often still in school or at home, so they have a more stable support network to help them understand the process. It also ties into the civics education element of it all. It establishes voting as a habit early on. Of course, we have compulsory voting, but that doesn't mean—the fact that anyone, at all, doesn't vote is an issue.

The other thing is that policy decisions relating to long-term impacts—climate, housing, education—directly shape the futures of younger people. Bringing their voices into the formal democratic process helps ensure that policies enacted by government and decisions made by parliament more accurately reflect their long-term interests.

Senator HODGINS-MAY: In relation to accessible voting, in a line of questions at Senate estimates, I discovered that the AEC has significantly improved access for voters. What sorts of things or what measures could be implemented to further increase accessibility for people wanting to cast a vote?

Mr Parry: Some disability organisations have recommended extending the phone and electronic assisted voting that we saw implemented during the pandemic era to enable people who cannot vote independently in person, obviously with the inclusion of strong privacy and security safeguards. In terms of physical access, consistent national standards for accessible voting, like accessible entrances, parking and signage. Some others have also advocated for low-sensory voting times, which we know has been implemented in other realms; clearer ballot formats; potentially the inclusion of candidate photographs, which some states and territories already have for their voting; and additional training for polling staff on being aware of disability support. Those are some of the practical adjustments.

Senator HODGINS-MAY: Pointing to the fact that we are seeing a rise in informal voting in some areas and, I think, some disillusionment among young Australians, do you have any recommendations on civics education measures that might, I suppose, improve engagement with the voting system?

Mr Parry: I was talking about Scotland before. Some of their experience shows that when schools run, for example, mock elections alongside actual elections, young people are more confident participating once they become eligible. So programs that connect civics learning to real political processes; partnerships between the AEC, Australian Electoral Commission, and schools; youth advisory councils linked to local government; community based dialogue programs. They're more effective than one-off lessons. Again I could probably speak from personal experience in engaging my colleagues outside of the political realm, their experience is that there is a disengagement from the political process, or civics more generally, and I think that needs to be addressed. In terms of First Nations participation in remote communities, it's valuable to support further trials of approaches that show promise in states and territories. In the NT, the mailbag enrolment pilot is an example that could inform federal approaches. I suppose it's more about continued investment in outreach, interpreter services and culturally appropriate and socially appropriate remote polling access.

Senator HODGINS-MAY: This probably flows on from the chair's questions. In your submission you note:

While we share concerns about booth safety, we remain apprehensive about changes to the ability of volunteers from both political parties and third party organisations to campaign …

Could you elaborate on the nature of those concerns and what impacts those restrictions could have on voter engagement and participation in the electoral system.

Mr Parry: We definitely share concerns with the safety and aggression tactics of polling places. The majority of third-party organisations, unions, charities and issue based advocacy groups play a constructive role. I suppose that's the key point there. Restricting their presence can unintentionally limit access to information that some voters rely on. The more targeted approach is to strengthen conduct standards—things like ensuring better training for booth staff, introducing clearer rules about misleading and deceptive conduct and, as I said before, truth in political advertising, which some jurisdictions have already introduced. The goal is maintaining an environment that's safe, respectful and informative without the limiting of democratic participation.

Senator HODGINS-MAY: I think that closes out my questions. I appreciate your time today.

Senator MULHOLLAND: Thank you, Mr Parry, for joining us. I want to move to third parties and not-for-profits. Having a read of your submission, I note that you say charities and not-for-profits play a role in elections and there is some concern around reducing their ability to participate. This committee has heard evidence from a number of witnesses now about the conduct of a particular group of third-party individuals at the last election, namely the Exclusive Brethren or the Christian Brethren organisation. I just want to see whether, in the experience of the Greens party across the board, you have noticed (1) a similar uptick in their involvement in the last election and (2) any commentary about their behaviour in the last election.

Mr Parry: I can speak more from personal experience, necessarily, than from the formal Greens submission—I am here. Yes, there was certainly, in my experience, an uptick in—I can't say with certainty. I beg your pardon, Senator; I want to make sure that what I'm saying is accurate.

Senator MULHOLLAND: Sure.

Mr Parry: In my experience, the lack of [inaudible]

Senator MULHOLLAND: We just lost you there for a moment. We might be having internet gremlins. Do you want to start again?

Mr Parry: Certainly, yes, as I said, to ensure accuracy. Including truth in political advertising and the removal of money, I think, goes ways towards ensuring that people know exactly whose interests are being served when people are seeking to influence people voting at the polling booth.

Senator MULHOLLAND: Okay, I might just circle back to the example I was providing around the Christian Brethren. We are not yet aware of whether or not they have donated in significant numbers to candidates at the last election. All that we can judge their involvement on is what physically was witnessed across the country in numbers of seats. We've received lots of submissions and evidence to that piece.

What we have seen is some significant instances of—you've talked in your submission about trends around intentionally antagonistic behaviour targeting other political or third-party volunteers. I want to ask the Greens, given the party have put in a submission, whether that was the experience of your volunteers. I'm happy if you can only draw on your own personal experiences from seats that you were involved in—if you did witness that type of behaviour.

We're trying to get a sense of the scale of this particular behaviour, which has now resulted in *Four Corners* episodes and *Sydney Morning Herald* articles. We're really just trying to get a sense of what the behaviour was, where it occurred, who witnessed it and what kind of impact there was. I would welcome any thoughts you have in that space.

Mr Parry: The specifics aren't addressed in the Greens' submission. From personal experience, the majority of my work was done in the Northern Territory of Australia. That kind of intimidating, or intentionally antagonistic, behaviour was certainly witnessed in Darwin.

A personal example was, at one point in time, I was handing out how-to-votes or what have you, leaflets, at the polling booth. A volunteer for another party came up and stood immediately behind me, essentially seeking to intimidate me. As I said, it turns people off. In terms of the population, the people who were voting, they come along and they see that sort of behaviour and they go, 'It's just politics,' or, 'It undermines the importance of democratic participation.' That was my personal experience in the Northern Territory. I know that certainly anecdotally—I want to really clarify that this is anecdotal more than formal, data driven evidence I'm sharing with the committee—that was the experience in other places in Australia as well.

Senator MULHOLLAND: I'm very sorry to hear that you had to experience that during your time volunteering. Do you have any thoughts about how we address that type of behaviour? Are there mechanisms? We have heard other witnesses talking about the need for a voluntary code of conduct for booth workers and

volunteers. Is that something you think would be beneficial, or is there something else you think might be more beneficial?

Mr Parry: I think so. We do speak to requirements for what is the expectation of those participating in the democratic process. A code of conduct for those volunteering on booths coupled with better training for the AEC certainly would be helpful. As I said, the question of truth in political advertising as well as the influx of money, and mechanisms to curb that, are ways of informing behaviour more generally.

Senator MULHOLLAND: Certainly. With those two examples of transparency and accountability measures, do you see a role for expanding the requirement to register third parties as well so that people know the people who are at a polling booth purporting to hand out material are registered with the AEC, so there is a level of transparency and accountability around who they are and what they're doing there at the booth? Not limiting it who can come or how many, but that there is some register around who they are so that there is a transparency and accountability to it.

Mr Parry: Any mechanism towards increasing transparency should be given real consideration by the committee, certainly.

Senator MULHOLLAND: Sure. And I know there was some content in your submission about relaxing some of the requirements around looking at—it talks about relaxing restrictions on charities engaging in political or issues based advocacy, particularly around allowing tax-deductible charities to act as political actors. What we are yet to understand is the full impact of what happened at the last federal election. We'll have to wait to see those donations, when they get disclosed, but what we do know is there were religious organisations with charitable status who were very active during the campaign. The ATO are now looking into those organisations after the *Four Corners* exposes into them. I personally have concerns around relaxing any restrictions that require them to report on their status and report on their involvement in campaigns. I think there is a potential blurring of lines that could occur. Do you have any thoughts on that process?

Mr Parry: I wouldn't suggest that we're of a view to relax it; it's more of a review to make sure it's working. It needs to make sure that it doesn't jeopardise the charitable status of organisations. We recommended that it's reviewed to provide certainty. If there are issues, they need to be addressed.

Senator MULHOLLAND: Thank you very much, Mr Parry.

Mr BURNELL: I want to go to some of your comments around the election polling booths—some of it might have been more specifically around pre-polling booths—and the need for more safe, respectful and informative interactions with voters and a better level of behaviour et cetera demonstrated by candidates and volunteers at those booths when we interact with voters, whether that be in person, people-to-people contact or through the use of materials. In your view, who polices that? We've heard from the AEC previously that their jurisdictional limitations end a the six-metre demarcation line. Who should be put in charge of oversight of conduct outside of that six-metre line?

Mr Parry: It's a very good question. I don't have a submission on that specifically. But the key points from the Australian Greens about these other reforms go to preventing that kind of behaviour. I think it's more the culture that's allowed, by virtue of some of these issues that I've raised, that provides for mechanisms for that to happen. I think that the lowering of the temperature or the reduction of aggressive behaviour is in part informed by ensuring that the rules better fit a transparent, participatory democracy. I don't have a specific submission to you on that question.

Mr BURNELL: You can't just sit there and pose a question to us or make a submission that says you want to see a de-escalation in that type of behaviour and not have a solution for it. I just find that a little bit bizarre, Mr Parry. If you're talking about enforcement of conduct on polling booths and prepoll booths, especially, there has to be some level of oversight that sits outside of speculative legislation or guidelines. Who enforces the standard?

Mr Parry: The submission is that these reforms in relation to the reduction of the influence of what I term dark money—which is money that we don't know where it's coming from—as well as the truth in political advertising are the solutions to de-escalating that culture of aggressive behaviour. As I've said, I don't have a specific solution in terms of policing the behaviour after the fact. It's more about making the system work such that that culture isn't fostered.

Mr BURNELL: What if I were to suggest to you that we put a limitation on the number of corflutes per party per polling booth, a limitation of bunting and a limitation of volunteers handing out material at each polling booth or prepoll location? Would that go some way in changing antisocial behaviour by people conducting activities on a polling booth?

Mr Parry: It's a very interesting question and one that might be better answered by the local communities where those issues are occurring. I suppose people's reflections on their engagement with democracy have manifested through the things that you've just said. It can't just come from politicians, and it can't just come from political parties. I think that hearing from voters, the democratic population—it has to come from them. I don't think making restrictions—I think there needs to be more work on that.

Mr BURNELL: Do you think that political parties need to play a more proactive role in determining the behavioural standards on polling booths?

Mr Parry: Personally, yes. I think that part of the way that that can occur is through reforms that lower the temperature, increase transparency and increase democratic participation.

Mr BURNELL: You talk about lowering the temperature. I think there are two different types of temperature experienced during election campaigning. There's the competition of ideas and policies that have been put up by competing candidates, but there's also the pressure that occurs at the polling booth through ways of intimidation, obstruction et cetera that are conducted by volunteers, by candidates and by others from time to time. In the contest of political ideas, I don't know whether you can drop the temperature on those things, but you definitely can have a way of influencing behaviour on the polling booths. So I just find it a bit bizarre that you've got no suggestions as to how we can do that, such as by dropping the number of volunteers per booth per candidate et cetera.

Mr Parry: The suggestions, as I said, are to decrease misinformation or the ability for misinformation and disinformation to occur. I think that, if you operate in a sphere where you can say whatever you want without it being true—you know, the comments that you've just made were in terms of the contest ideas, of course, but does that mean that we resort to lying or to misleading people or deceiving people? I'd suggest that that shouldn't be part of the Australian political culture.

Mr BURNELL: But then that brings me back to the point I made at the start: who polices that? Outside of the area covered by the six-metre rule is where a lot of the infractions are occurring, and somebody has to have oversight of that when an infraction occurs, and there needs to be a way to have a speedy response. I'm just interested to know what your insight would be into a potential solution.

Mr Parry: I don't have a specific response as to who. The work or the submissions that the Australian Greens are making relate more to trying to make that not happen in the first place.

CHAIR: I think it would be helpful for the committee to have your views as a longstanding political participant with, obviously, a huge interest in the process of elections, because, for the reforms we are going to put in our recommendations in our report, it would be good to have a bipartisan view. So, if between now and when we write a report the Australian Greens could consult with their members and your executive and your party structures to come up with some solutions for our committee to consider, that would be very helpful.

Mr BURNELL: My last couple of questions are in relation to the repealing of section 44. Do you acknowledge that section 44 is there primarily to ensure that foreign state actors don't get inside the wire from the point of view of being able to participate in the democratic discourse of this country and have access directly to our nation's secrets et cetera?

Mr Parry: I would suggest that this submission is not to repeal section 44 but more to reform it.

Mr BURNELL: Sorry, Mr Parry. Your submission, under the heading '4. Making elections fair' on page 7, says:

4.1. Repeal s.44.

Mr Parry: I beg your pardon. Forgive me for that comment. I think, given the fact that half of Australians are born overseas, it's a barrier to democratic participation. In terms of the comments that you've just made in terms of protecting Australia, I wouldn't suggest that that would be undermined by changing section 44.

Mr BURNELL: There's a legitimate reason for people to need to be able to declare allegiance to Australia if they want to represent the country and represent electors. When I look around the chamber in the House of Representatives, I see a really diverse collection of people from all sorts of backgrounds, from around the globe, and they provide extremely constructive input into our political discourse. So I'm not sure how section 44 restricts the ability for people to participate within our democracy, because when I look in our chambers that's what I am seeing. We have got this really diverse collection of fantastic people from around the country.

Mr Parry: There's no denying the calibre of those in the chamber, but any mechanism towards a greater reflection of the Australian population in the parliament, I think, should be a key consideration.

Mr BURNELL: Okay. Thank you.

CHAIR: Ms Campbell.

Ms CAMPBELL: Thank you, Mr Parry, for giving evidence today. I might follow on from Mr Burnell's section 44 question, in terms of its potential negative impact on multicultural participation. You've said in the front of your submission that ensuring that a diversity of voices participate is very important. I want to come back to multicultural participation, particularly in terms of candidacy. Do you think that section 44 has been an impediment to the Greens preselecting people from different multicultural backgrounds into winnable seats?

Mr Parry: I'm sorry—is this a question about the Greens preselection?

Ms CAMPBELL: You've flagged that multicultural participation in the parliament is a concern and you've said that section 44 is a reason for that. I was asking whether you thought that section 44 had been an impediment to your party in terms of preselection of people from multicultural backgrounds into winnable positions in the parliament.

Mr Parry: I wouldn't suggest that. Any discouragement of people from backgrounds that are not reflected in parliament should be addressed.

Ms CAMPBELL: Yes. And you think that section 44 is the biggest impediment to that.

Mr Parry: I think it is an impediment. Any mechanism through which greater participation can occur should occur.

Ms CAMPBELL: What do you think are the other impediments to parties electing more people from multicultural backgrounds?

Mr Parry: I suppose it's less about parties. At the end of the day, it's the voters that vote. But there's also the addressing of incumbency advantage. I'd suggest that more voices in parliament— having more voices in the room—creates better decisions. There are some suggestions in the Australian Greens submission relating to the use of government resources, for example, around the times of elections. The Grattan Institute, for example, estimated that $50 million from the government's advertising budget was spent on promoting government achievements each year, especially in the lead-up to an election. I think that should be looked at. The unfortunate thing is that the pork-barrelling that we've seen across the political aisle also turns people off democratic participation. They think it's a matter of vested interests and, as I said before, clientelism, where there's money for access for a quid pro quo, for example. The sports rorts, commuter carparks and building better region grants are examples of government grants that are directed towards at-risk electorates. Transparent decision-making and transparent criteria for how government spends its money can only increase democratic participation.

Ms CAMPBELL: I was actually talking about people from multicultural backgrounds—culturally diverse people—representing us in parliament. In terms of that, you said that it's less about the parties and more about the voters. I was going to ask what you meant by that. In terms of making sure that we put up people from culturally and linguistically diverse backgrounds into particular seats, how is it not to do with the parties? We've seen that Labor has, I think, almost a quarter of those in the lower house identifying as culturally and linguistically diverse. How is it not about the parties but about the voters? I think voters have absolutely embraced people from multicultural backgrounds.

Mr Parry: I might have misunderstood the question. I thought it related to how people get into parliament. I'd suggest that mechanisms that create the expectation that parties decide who goes in should be reviewed. This also speaks to civics education, of course, because if there's an expectation that if I vote for X then Y and if that's not fundamentally true—and a specific example of that is the Australia population doesn't elect a prime minister. That's a mechanism or it's by convention. The Prime Minister doesn't exist in the Constitution. Again, it's a matter of convention. The point I made before about civics education and ensuring that people are engaged as early as possible to understand how the system works goes to the issues I was talking about.

Ms CAMPBELL: I understand. Again, I was talking more about multicultural representation in parliament. I understand that you identified section 44 as one of the impediments to multicultural participation in parliament—that is, making sure that our parliament is more representative of our community. What are the other impediments if section 44, as you say, certainly for your party, is but one impediment to getting more people from multicultural backgrounds into parliament?

Mr Parry: Everything that I've said up to this point. I wouldn't necessarily use the word 'universal', but it's more that the undermining of trust and faith in the democratic process needs to be addressed. That in part is the introduction of truth in political advertising as well as the removal of money from the electoral process. Those two parts also speak to how people view the democratic process or the electoral process. If people from any particular cultural background are of the view that you're required to have money, or to act or behave in a certain way at a polling booth, then that should be addressed in order to increase democratic participation.

Ms CAMPBELL: I understand. So you're saying that the Greens party position is that, in order to improve the level of multicultural representation in our parliament, we need to do truth in political advertising and remove money.

Mr Parry: Yes, exactly.

Ms CAMPBELL: Okay. I want to go to your response to Mr Burnell's earlier question, which was, I think, that you believe that political parties have a role to play when it comes to aggressive behaviour. I was wondering what sorts of practical things political parties could be doing in their role, in terms of addressing aggressive behaviour.

Mr Parry: That comment was more in a general sense. If anyone is aligned with any particular organisation, you'd think that they would act in a way that represents them well. There aren't any rules at the moment about behaviour at the polling booth, for example. Forgive me; I'm not sure which member of the committee made the recommendation about a code of conduct, but if there's a requirement for certain behaviour at a polling booth then of course political parties should be required to adhere to those. As I've said throughout this, though, it's those other mechanisms in relation to the removal of misinformation and disinformation, and the removal of money that is not transparent—just the removal of money generally—that will create an environment that better serves democratic participation.

Ms CAMPBELL: I think you said earlier that the rules need to better fit a participatory democracy. Do you support increased AEC powers to address misinformation and aggressive behaviour?

Mr Parry: It's a very good question and one that the committee obviously needs to consider very carefully. As I said before, who polices it and where that comes from is not part of our submission today. As I said, it's more about creating an environment where, if such policing powers existed, they wouldn't need to be used because the temperature would already have been lowered by virtue of other reforms.

Ms CAMPBELL: Would you support an exploration of sanctions for a breach—for some of the important things you've brought up, for instance aggressive behaviour? You pointed out particularly that you'd seen aggressive behaviour towards young women. Would you support sanctions for aggressive behaviour directed at young women?

Mr Parry: I think that absolutely needs to be part of the consideration of addressing the behaviour—absolutely.

Ms CAMPBELL: I'll take that example because I know that's something you've experienced and that was explicit in your submission. Would you support a third party making an assessment as to someone's aggressive behaviour toward young women on a polling place? Would you support a third-party body, the AEC or another, doing that?

Mr Parry: Again, any particular body responsible for undertaking that is not part of our submission today. The key thing we really wish to submit is the lowering of the temperature by virtue of reforms that lower the temperature rather than waiting until after the fact.

Ms CAMPBELL: When you're talking about 'lowering the temperature', and when we're talking about aggressive behaviour to people who we want to participate in the political process—as you said, people from ethnically diverse backgrounds, young people, women—I do just want to understand what your hesitancy is to offer a solution in that space. That's given that I personally and the committee have heard some harrowing stories. I'm interested in why you're hesitant to offer a solution that would provide a mechanism for sanctions against people who might be aggressive to people from different, ethnically diverse backgrounds or young women, who have experienced that aggressive behaviour at polling booths.

Mr Parry: I wouldn't characterise it as hesitation to provide an opinion. As I've said, it's more about preventing it from happening in the first place, fully appreciating the experiences of people who have experienced that aggressive and antisocial behaviour. The Australian Greens' submission is that mechanisms to prevent it happening in the first place—for example by truth in political advertising and removing the influence of money—go towards making it not happen in the first place. It's not a hesitancy to provide a suggestion on that end; it's more of a question for the Australian Greens' submission of where the priorities of the committee are best directed.

CHAIR: Ms Campbell, we're running up on time, so we've got one last question, then I've got one question from Mr Neumann.

Ms CAMPBELL: I understand you're talking about lowering that temperature. Do you think that policy positions in relation to electoral funding and truth in political advertising will prevent someone from being aggressive to a voter on a booth?

Mr Parry: I think it creates a culture where that sort of behaviour can be fostered. What I mean by—

Ms CAMPBELL: Do you think it will inherently prevent someone—the example of your young female volunteer—from being the target of aggression on a booth?

Mr Parry: I think it goes towards the expectations that we all have about how the political process should be. That includes safety and security for people engaging with the democratic process.

Mr NEUMANN: My final question is: based on section 2 of your submission, is it the Greens's position that the AEC should be the arbiter of truth in advertising—in other words, the arbiter of words—but not the arbiter of inappropriate behaviour at polling booths? Is that your position?

Mr Parry: The AEC is an excellent example of the Australian democratic process. I think that any mechanisms towards questioning what they do or how they do it need to be considered really very carefully, because the faith in the electoral process has manifested through the work of the AEC. It shouldn't be qualified. The submission from the Australian Greens is that their role in administering and facilitating transparent and fair elections needs to continue. Being the arbiter of disputes or concerns is obviously a key consideration and issue for the committee to consider, but our submission is that the AEC shouldn't be undermined at all.

Mr NEUMANN: But not worthy of any submission by the Greens? Even though you, in your evidence today, have agreed with Ms Campbell that a code of conduct would be a good thing and sanctions against aggressive behaviour towards young women would be a good thing, you are yet to provide any information to this committee. Can I back in the Chair's suggestion that you go away and think about what the AEC should do within the six-metre rule in terms of behaviour at polling booths. Think about it again and come back to us.

Mr Parry: I'm happy to take that as a comment.

CHAIR: Thanks for your attendance today. If you've been asked to provide any additional information, please forward it to the secretariat by Friday 21 November 2025. Please also feel free to write another submission on some of the matters we've raised today.

Mr Parry: Thank you, Chair, and thank you to the committee.

Proceedings suspended from 12:52 to 13:11

BOELE, Ms Nicolette, Member for Bradfield, Commonwealth Parliament [by video link]

CHANEY, Ms Kate, Member for Curtin, Commonwealth Parliament [by video link]

HAINES, Dr Helen, Member for Indi, Commonwealth Parliament [by video link]

LE, Ms Dai, Member for Fowler, Commonwealth Parliament [by video link]

POCOCK, Senator David, Senator for Australian Capital Territory, Commonwealth Parliament

SCAMPS, Dr Sophie, Member for Mackellar, Commonwealth Parliament

STEGGALL, Ms Zali, OAM, Member for Warringah, Commonwealth Parliament [by video link]

CHAIR: I declare the meeting open. I welcome the participants in today's roundtable. Although the committee does not require you give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and, therefore, has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. Evidence given today will be recorded by *Hansard* and attracts parliamentary privilege.

I thought the best way to go through this would be to give you all the opportunity to make a brief short statement at the start. But then what I thought I'd do is just go through the terms of the inquiry and open up discussion on each of those points. If you don't want to make a submission at the start, that is also fine. Then we'll go through the terms of reference. I've got a little order here, so I'll run through that in the same instance each time round, and we can try to get through as much as we can.

We've got a little while before this committee needs to write a report. If we don't get through everything today, I'd be very happy to work with you all to come back and to give the opportunity to others who didn't make it today to come back as well. I'll start with you, Senator Pocock.

Senator David Pocock: Thanks for this opportunity. I will just start by thanking the AEC and the AEC in the ACT. I think we cannot emphasise enough just how important the AEC is and their independence. As a parliament, we need to ensure that we continue to resource them in a way that they can actually do their job as they have been doing. The main things I guess that I'd just like to put down now before we move to the discussion is that I think, from my point of view, we need to we retain features of the act that increase transparency, such as lowering the disclosure threshhold and real-time reporting, but we also need to expand the definition of 'gift' to include all money received by political parties. That would close loopholes that currently allow cash received for events and memberships and various other means to avoid disclosure requirements.

As an Independent, I think we should be looking at pausing the introduction of the current donation and expenditure caps and the changes to public funding of elections until full transparency measures that passed in the government's electoral reforms have been in place for at least one election so that we can better understand the full donation landscape and how money is actually flowing. The potential impacts, particularly on new entrants, can then be evaluated. What will the proposed caps on donations and spending actually mean? Looking back at this election—there have been big changes that have gone through. I think in the next parliament there should actually be a select committee that isn't controlled by government that considers the impacts of the transparency reforms using all the donation data and really looks at how that's affected our elections.

Finally, I guess, from a very territory-specific angle, I think clearly there is an appetite and support for an increase in territory representation. I strongly argue that we should actually legislate a nexus between the number of senators from the states and the number of senators from the territories, whereby territories would have as close to half the number of senators as the states. I'm very wary of simply increasing the number by one or two, and then we're in this situation again in 10 or 20 years time, particularly in the context of discussions about a bigger parliament, which would then increase the Senate. I think that ratio is really the way to go. But I'll leave it there. I'm sure there's more to discuss.

CHAIR: Thanks, Senator. Ms Steggall.

Ms Steggall: Thank you for the opportunity. For me, the key area that I'd like to raise is the ongoing need for truth in political advertising. There's still a huge amount of misinformation and disinformation being sent out across electorates and also put at electoral booths, which leads me to my second point about third-party campaigning. We're seeing a rise in third-party organisations campaigning and entering the fray in the misinformation/disinformation space—to the extent that we are talking large-scale wrapping on public land of non-political party material. There's been a tradition of wrapping schools and fencing by political parties, but now we're seeing third-party organisations do that wrapping as well, frequently with misinformation and

disinformation on that wrapping. There's essentially no consequence for that, because that's at a polling booth on polling day and very little can be done.

I'd like to echo the comments by Senator Pocock that the AEC do an incredible job, but they're put in an absolutely impossible situation with the onslaught that there is now from third-party organisations, because there is no policing or real regulation when it comes to signage, content of political signage, advertising and messaging or the amount of it. What we're seeing is just a race to a crazy amount of corflutes and wrapping at polling booths and on public land. We received a number of complaints from the public in relation to the amount of signage on public land. Of course, that falls back to whether or not local government decide to implement any rules around that, but that was very concerning at polling booths and stations, especially as it got closer to the election.

Obviously, I'm calling for the implementation of truth-in-political-advertising laws so that there is recourse for those affected by misinformation/disinformation. I'm also calling for some regulation on a national level around the amount of signage, corflutes, banners and wrapping that are on public land as well as regulation around third-party involvement. They don't have a candidate on the ballot paper, so they can afford to be misleading and deceptive, essentially acting with impunity.

I believe colleagues will be raising the issue of postal votes and data mining—that that should not be a free-for-all. I'd also like to raise the issue of spam messaging to constituents. The exemption to political spam is a frequent area of complaint from the public.

CHAIR: Thank you, Ms Steggall. Ms Le.

Ms Le: I echo Zali Steggall's comments, in that all of the major wrappings from major parties around schools is really—first of all, we're talking about the environment and those sorts of plastic that can't be recycled. Some sort of regulations around the wrappings everywhere—it's just terrible. At a local level, council do send out a mail-out notifying candidates in elections to comply with not putting posters on public land, but no-one listened and took that kind of notice seriously, so I think it has to come from a federal level as well. That's a big issue.

I also acknowledge AEC's role and the challenges of dealing with a national election. I will be looking at this more from the voters' perspectives. How locations are chosen for pre-polling booths is a challenge. I'll give you a couple of examples: there was a polling booth that was chosen next to a council facility, and it had lots of car parking, toilets—everything. The location chosen was right across the office of the candidate, but the problem with that location was it had no toilets, so the elderly coming there to vote were told they had to walk a few hundred metres to go to the next location, which was a council facility where council often hold their elections and it's really great to park, whereas at the location next door there was no parking. I don't know how your polling booths are, but my polling booth is a nightmare, and pre-poll in particular. It's crowded—we have more than half of the population voting prior to election day. I think it would be great to assist with location, and if the AEC could engage with local councils, because they understand where it's best for residents to park, especially for people visibility and the elderly. The location is quite critical.

The other part is material. Again, I know the AEC has done its best to put things in languages and that it has to be organised by AEC, but sometimes those languages, when the posts are put up on the last day and there's misinformation—and you don't have the time to go and do your handing out. I'm sure everybody experiences that, and I don't know if it's something that the major parties would support putting a stop to. I think that is very important too, misinformation being placed on election day and right throughout pre-poll.

The other option is, perhaps, to open on a Sunday. We find that people in areas work two jobs—they work at factories—so they're trying to rush there by the evening. Perhaps half a day on Sunday is something worth while considering. We've done that at a local government level and people really like that idea—they come to vote on that half-day Sunday.

Dr Scamps: Thank you for the opportunity to present. I reiterate Senator Barbara Pocock's words about how thankful and grateful we are for such a strong and independent AEC. I think we are very lucky in this country. For me the biggest issue at the last election was the level of misinformation and how that was weaponised in both advertising and marketing in newspapers and social media, and how that was taken up by secondary and, potentially, peak bodies. To reiterate what the member for Warringah said, truth in political advertising is absolutely paramount. We're moving into a completely different world of communication, and that needs to be addressed.

In talking about misinformation, another aspect was the phenomenon of astroturfing—fake grassroots groups. On one that was particular to me, the former member for Mackellar, Jason Falinski, headed up a group called Australians for Prosperity, which indicated it was a grassroots movement but was headed up by former Liberal Party operatives. That was misleading to the community. Also, fake social media accounts came up, pretending to

be supporters of mine, with off-putting and derogatory remarks; they were run by none of my volunteers. Then there was the use of AI altered images of myself, whether it was a different face on my body or my face with a different body; that was quite alarming as well.

The how-to-vote applications and the harvesting of data is a concern. The other thing I will mention is the 'ghost candidate' phenomenon, where there is a candidate on the ballot paper but you never see them, they don't exist and they're not in the electorate either. One last thing: I agree that the definition of what a donation is needs to be tightened up so that groups aren't getting donations under the guise of gifts and other things and membership fees.

CHAIR: Ms Boele.

Ms Boele: Having seen this up close and personal in 2025, I also say hats off to the AEC. Everyone works very hard to protect our democracy—it's not something that happens accidentally—and I am very grateful.

I welcome the opportunity to present today. Things were very, very different between 2022 and 2025. Sure, it was because my electorate of Bradfield was contested, but there is a rise, normatively speaking, in the fact that it is okay to be intimidating and to be aggressive online, in the mail or in person. I have deep concerns about this. I have concerns about lies in political advertising. Intimidation is potentially turning voters away and it's the opposite of what we want to do to create a healthy and vibrant democracy, but it comes third to fixing the lies in political advertising and the undemocratic aspect of campaign finance reform, which still puts parties at the centre of political campaigning rather than electorates and voters.

For me, it would be anything from inconvenient to incongruent, as a community Independent, to have to form a party just to compete administratively alongside major parties in the next election and subsequent elections, to fit in with some of the benefits that parties will have but Independents won't—and that's not to mention the new entrants seeking to stand in forthcoming elections. I support the intent of those features Senator Pocock put in his opening statement and ask for a pause on those reforms until we can clean up some of the other low-hanging fruit accountability measures that would enhance trust in democracy and its institutions and processes. I look forward to providing some input into most of the terms of reference in due course this afternoon.

CHAIR: Dr Haines.

Dr Haines: Thank you for the opportunity. For the record, I also wish to add my gratitude and admiration for the AEC and the work they do. I think we must give very real consideration to any financial support they seek in order to maintain, expand or improve their services.

I put in a written submission to the committee. In addition to that, I highlight, in regard to the first dot point of the terms of reference, that there is no doubt in my mind that over three election campaigns the increase in aggressive conduct in misinformation both online and in person, and through all levels of media, is out of control. I've seen more intimidating behaviour towards voters from not only campaigners at the polling booth but candidates themselves. I saw this time, for the first time in three years, a candidate who, consistently at the polling booths, would follow voters all the way up the queue and put his body between the voters and me, mostly; I hadn't seen that before to that kind of consistent level. There seemed to be no shame in doing that and it was very, very difficult for anybody to stop it. I was appalled by that.

I was also shocked at third-party influence this time. I saw it in the last election, but third-party influence is again increasing and there seems to be no way for the AEC to have any jurisdiction or accountability over that. It is concerning. That goes to points that have already been made by members in regard to truth in political advertising. We have to do something about this. It's damaging our democracy, I believe.

I'm desperately worried about the general escalation in potential violence. I know my electorate did not experience this to the same degree some of my colleagues did, but, nevertheless, we had to have a police presence in one of our small rural booths in particular. That's completely unheard of in a country polling booth. It was dangerous and many of our volunteers did not want to wish to return to that polling booth because they felt so threatened. It's extremely difficult for the AEC to manage that. We have limited resources when it comes to police officers, so to have to have police officers around a polling booth is desperately concerning.

I want to comment on some of the additional terms of reference—I know we'll get to them more broadly—that the Special Minister of State has put forward about increasing the number of MPs. I think that requires very significant interrogation and inquiry before we go to that, not least of which what it would cost in terms of public contribution to funds. I think there are some significant issues we'd need to investigate about that.

I very much like the idea of fixed terms. That would help address many problems, not least of which is one put forward by the member for Fowler about the appropriateness of polling booths. It's extremely difficult for the

AEC, not knowing when the date will be, to try and find the right locations for polling booths. We put the AEC under enormous pressure because of that.

Finally, the next-level escalation in corflutes, booth-wrapping and materials around polling booths is out of control. I don't think it aids democracy at all and it's an absolute race to the bottom when it comes to what our polling booths look like. It's incredibly intimidating for voters. I don't think it assists our democracy in any way, quite frankly. That's all I'll say, but I will have more to say throughout the inquiry.

CHAIR: Ms Chaney.

Ms Chaney: I want to make some comments about the practicalities of the next election, and then go to the terms of reference about the electoral reform package. At a practical level, we similarly had issues with the location not being ideal. I understand it was the best that could be done in the context, but the voting location in the north half of my electorate wasn't actually in the electorate.

I've got nine different local government areas within Curtin, and they all had different rules about signage. As it turned out, those rules were not enforced, which then put us at a disadvantage for having complied with the rules. Local governments are at a loss to know to what extent they can enforce rules without breaching the implied freedom of political communication. Some clarity around that would assist local governments and might mean they're able to be enforced.

The postal voting application issue with data harvesting was a big one in my electorate. I think we did a campaign explaining that, if you sent your form back to the processing centre in the reply-paid envelope, it went to a political party and not to the AEC. As a result of that campaign we had 8,000 fewer applications for postal votes in my electorate, which was different to the overall trend. I think that really shows that people hate that practice. They are disturbed by it. They feel that it undermines the trust we have in the AEC. Political parties should not have a role in collecting people's personal data and passing it on to the AEC. It slows down the process. And it undermines trust, when people are sending their personal information and they don't know who they're sending it to. We certainly got a lot of feedback from people about what they thought of that process and the loophole that allows that to happen.

In terms of aggressive behaviour, we had some. I don't think it was as bad here as it was in other places, but, as the sole Western Australian on this call, I would say that there definitely were plenty of anecdotal stories about the presence of third-party groups such as the brethren. There were some here, but I would say they weren't a huge problem in Curtin. But also there was threatening behaviour: I had five threats against me personally, via email, which we referred to the AFP. My volunteers certainly found themselves in some quite confrontational situations. But it seemed to be more with the general public and not part of an organised approach.

I'll go on to the electoral reform—and one of the terms of reference addresses this. I just first want to note for the record that this inquiry now is not an inquiry into the future impact of that electoral reform. The terms of reference consider the interaction in the last election with this package that's going forward, but there will be not that much interaction because it hasn't happened yet. I do want to put on the record that the process of that electoral reform package in November and then in February was really unsatisfactory. It being rushed through with no inquiry, when it's the biggest change in 40 years, I think really undermines trust in the intent of the reform package. There were some good bits in there about transparency, which I've been doing since day one, but there's a lot in there that is deeply problematic, and I do think it still needs its own review to look at how those things are going to work prospectively.

I sat on the JSCEM last time and put forward additional comments, identifying the 13 party advantages and five incumbent advantages in our system that I could identify; there may well be more. None of those advantages were addressed in the electoral reform package, and many of the so-called reforms that have been put forward actually exacerbate those advantages and make it even harder for Independents to run. So I think that's a deep problem with the reform package that is put forward.

On the substance, the massive increase in public funding means taxpayers are paying more for less choice, because that money largely goes as a reliable revenue stream to political parties and there isn't really appropriate funding for challengers. As to the administrative funding—the extra $30,000 per year per MP—there's no justification for this figure, and it translates to a huge amount of money going to political parties. The ALP currently has four people to meet the admin needs of 104 parliamentarians. There is no need for that to increase in a linear way, and I think it's just another way to embed the party structure.

On the spending cap, the party advantage in the way the spending cap has been structured is extraordinary. There were generic corflutes in my electorate that said 'Vote Liberal' rather than naming my opponent, and they would not be covered in the cap. The way that that cap has been structured, so that it's $90 million for parties but

$800,000 for individuals, and the parties can decide—can use that strategically—I think really undermines the benefit. I can see the benefits in a donation cap, but, as to a spending cap, if the donation cap is structured properly then there's no need for a spending cap. Certainly, in the campaign in the 2025 election, I think we again demonstrated that there are significant costs associated with getting a message to a largely disengaged public. That does have a real impact on the choice that voters have.

Similarly, nominated entities didn't come into play in the 2025 election, so, again, this inquiry is not going to address the impact on nominated entities and the changes that have happened there. But there are huge assets that are available to the parties, and any Independent doesn't have access to that. Any new party could only build up their wealth one small donation at a time, and that, again, reiterates the huge bias in those reforms towards major parties.

I'll echo the comments made by others about the definition of 'gift', the huge number of exemptions to the definition of gift in the new package that has been put forward and the real problems that those create not only in complexity but also in it not being a level playing field.

Other parts that have not been legislated I mentioned in my additional comments in the last inquiry. There are disadvantages for Independents, such as access to the electoral roll for new challengers. The tax treatment of donations for Independents versus parties is pretty incredible. I pay personal tax at the highest marginal rate for donations made to me, but parties don't do that. The exemptions for political parties to the Privacy Act and the Spam Act certainly have caused consternation in my community, where people really don't like getting those spam messages and are pretty upset to find out that political parties don't have to protect their data in the same way that companies would have to.

Broadly, I think the AEC does an incredible job. We're very lucky to have them. We do need to make sure that competition in politics is possible. It's healthy for a flourishing democracy that competition is possible, and, in the reform package that has been passed into law but has not actually been considered, I think the real danger is that we are reducing competition in our political process. That undermines trust in the system and it will undermine the health of our democracy.

CHAIR: Thanks, Ms Chaney. I'm wary of time. I'm flagging here that we've probably got about 50 minutes to get through this, so we'll go through each of the terms of reference, from top to bottom, and, as I said, if there are any that we miss out, I'm happy to reconvene a roundtable in 2026. I'll go through that same order amongst the members of the committee for questions, and I'll keep my questions to one.

The first term of reference is aggressive conduct, obstruction and intimidation at polling places. From the flavour of the submissions we've received so far and from the feedback I got on the ground, particularly in Bennelong and from others, I think 2025 really crossed a line in terms of voter experience but also the experience of political participants like volunteers. I want to ask those here today: what do you think the solution is to that? I think Ms Steggall raised third-party involvement, so I would assume more regulation or more oversight of third-party involvement is a potential thing for the committee to explore. Do you support increased AEC powers? Do you support increasing the six-metre rule or increased fines? What are some of the mechanisms that you'd like to throw out to see some of that behaviour moderated a bit more? Put your hand up; we'll have a chat. Are there any specifics you want to give us so that we can consider them? Zali?

Ms Steggall: I agree. My observation would be that it's a problem at prepoll a lot more than on actual election day—prepoll where there are fewer booths to man, which means your more enthusiastic participants that are prone to that behaviour can be condensed. That might be an urban electorate versus a regional one, but our experience is certainly that we don't have anywhere near the same trouble on election day as we do at prepoll. Prepoll is by far more vicious. Some locations had very limited access, like in a library, where there was a strong limit put by the AEC of only two volunteers per candidate. It was actually still dangerous. It reduced the crowd of people, but it meant that you were standing within a space of about five metres, the width of a corflute. It was two people, two people—everyone was standing together, side by side, elbow to elbow. That meant volunteers had to stand all day next to very aggressive people and with no option to be anywhere else. So we had to very much change the roster of where we would put people as a result of who was where.

The number of entry points into a location creates the difficulty of keeping an eye on where there might be a behaviour that is getting out of hand, and the AEC staff can't get to all of those entry points. The interpretation of the six-metre rule varies from place to place, just as local government application of rules varies from place to place, so that is problematic as well. Sometimes the application of that six-metre rule left a health and safety risk on the volunteers because they were essentially being pushed into roads, gutters, traffic. It doesn't always work in practice. There wasn't always sufficient disability access to polling places, and again that aggressive behaviour made that even more difficult.

Dr Scamps: We did a survey of some of our volunteers, and 50 per cent of the volunteers reported witnessing aggressive, intimidating or obstructive behaviours towards either them or other volunteers or candidates during the election campaign. There was foul and unpleasant language witnessed towards Dr Scamps. There are a number of recommendations that have come directly from our volunteers as well, and I'll just go through a few of those. One was that there should be a code of conduct for political candidates, campaign workers, volunteers and scrutineers. I should say that we have a code of conduct for our volunteers, which is very much based on the member for Warringah's 'positive, polite and prepared'. It is also about how to de-escalate and not get involved in difficult situations. I'm very proud of the way that our volunteers behaved.

CHAIR: How do you think that code of conduct should be enforced? Ms Steggall highlighted the third-party problem—that they're not accountable via the ballot paper. So what are the penalties?

Dr Scamps: We need additional powers for AEC officials to enforce penalties for breaches of the code of conduct; AEC officials roaming outside the polling booth, beyond the six-metre exclusion area; and, potentially, preauthorised ID cards for volunteers with registration with the AEC. That's on that side of things. I also think that one of the issues that drives up aggressive behaviour at the polling booths and at prepoll is the misinformation. People get upset by reading misinformation, and then they come and express that. I had a number of episodes where there had been a headline on the front page of a newspaper with complete misinformation. People were quite distressed by that and were yelling in my ear and telling me I was disgusting, and I was having to not react to that.

Ms Boele: I have two families of things. The first is that I just want to get on the record that the intimidation in my case was a mixture of the New South Wales Liberal Party, third parties and also, unfortunately, some quite uncharacteristic local council officials. And it didn't just happen at prepoll and on polling day—although I do agree with the member for Warringah that it is very much more on prepoll. It also happened at my private property, which I did report to the AFP, of course. The intimidating behaviour was such that 100 metres around where I live in an apartment block—and I would see this when I went out in the morning—every single surface was covered with fully authorised New South Wales Liberal hate posters, I suppose. I live here with my daughter, I'm a silent voter, and I just felt that that was saying, 'I know where you live.' To come from a situation where someone else is already in the market competing for this I thought was completely unacceptable.

It also had private property. We had local council officers taking corflutes off people's private fences, which was also out of line, but that goes to Ms Le's point—and someone else made it—about the complexity. We've got three levels of government in this country, and, during federal elections, there are state and local environmental planning policies that are interpreted by local councils and enforced completely differently. Even though you want to try and do the right thing, it's not a level playing field, because no-one really knows what happens. It's very confusing and adds to the opportunity for more intimidation and playing the rules.

The second family of things about your challenge to talk about is how you fix it. I am not in the family of people that think that the AEC should play police. I think the AEC has an enviable reputation that we've all worked very hard to help maintain for it. People must have trust in them doing free and fair elections. When you start putting them into police mode, that endangers that opportunity. If they're not, they'll be challenged on whether they enforced that policing well or fairly. That, unfortunately, may need to be the job—given it's federal elections—of federal police or maybe local police. You'll be receiving some additional submissions after we do our roundtable, locally, in time for the deadline, around whether we maybe even make it an offence to interfere with the implied constitutional right of freedom of political discourse. It needs to be something that's dealt with, but I don't think the AEC should be the one that does it.

My last point on that is that 25 per cent of our electorate are Chinese-Australian voters, with just a bit fewer voting. They were particularly targeted with intimidating behaviours, including the blue team turning T-shirts inside out. They were walking through the six-metre mark into the polling booth and literally forcing the hands of people and showing them how to vote. That blurs into the AEC aspect, because people are allowed to be assisted with their voting. But it just didn't pass the pub test. It was aggressive and intimidating and took advantage of people who were possibly voting for the first time or didn't no how to say 'no', 'go away' and 'stop'.

Dr Haines: I want to add in terms of the evidence base that I've done a survey of my volunteers after every election. In this survey, 34 per cent of my volunteers reported a negative experience in this campaign, and that was an increase from 22 per cent in 2022. The hard evidence backs up my anecdotal evidence, and the most negative experiences were voter interactions and interactions with other candidates and their volunteers which were highly aggressive.

In terms of solutions, I agree with Ms Boele. I have concerns as to whether the AEC needed to expand their remit into greater presence and policing of behaviour outside the polling booth. I am incline to think the

committee should give some regard to limitation on the amount of material that is allowed outside a polling booth. I know Victoria, for example, limits the number of corflutes. They're only allowed to have one. In terms of the expense of running a campaign, that would be somewhat of a relief for many people.

But it is just completely out of hand and intimidatory. This issue of violence and aggression is indeed a real thing. I don't know the answer. But, when candidates themselves are actively participating in this, as I described before, following voters along the line, there needs to actually be a consequence for it. That may be that they can no longer stand outside that polling booth. I don't know. At the moment, there is actually no consequence. People just get away with this, and they push it and push it. That's all I wanted to say.

CHAIR: That's the trouble we're getting into, I think. More people are pushing the behaviour without any consequence. Ms Le?

Ms Le: Going to everybody's point, and partly going with the member for Indi as well in terms of the availability of material, corflutes, we were just thinking—because I've had many elections out here—people kind of get all worked up, rushing to the voters, especially during prepolling. I don't know what other electorates are like, but my queue is humungous, so it's just hammering people. I and a few of the volunteers thought maybe one of the ways to get around it is having all candidates stand there with a box of how-to-vote cards and, as people walk past, they just take the how-to-vote if they want to take it. That also saves us having the material being shoved into people. People take it and then they just dump it in the waste bin inside, and the poor AEC have to deal with overflowing how-to-vote cards that have been given to voters who did not want them but took them just to walk in.

Perhaps there could be a system whereby you stand there with the how-to-vote, you as the candidate with your volunteer standing there in the T-shirt, saying to people, 'Please collect the how-to-vote if you want one,' so we don't actually have to force people, but if they want it they can come to you and take it. That's perhaps a solution. I don't know if any of the major parties would agree to that. But that's where you don't have to actually chase people down the line, forcing people to take your how-to-vote card by just shoving it on one another.

Ms Steggall: Chair, could I just add something. We had one example of one of our prepolls that was very civilised—surprisingly. There was a race to get the corflutes and signage up on the very first day of prepolling. Then there was an agreement by all the teams and the booth manager at that prepoll, with opponent booth managers, that the same signage would be put back out in the same places for every day of prepoll. So, rather than having a descent into everyone racing to be there first thing in the morning to try and beat their opponents as to locations, it allowed for a more reasonable pack-up and put-out of each prepoll. I think a booth manager is essential, and a manager that is then responsible for the behaviour of the team I think is an essential element to keep a booth under control.

Ms Boele: If we're going to go there, I have to say that we hired private security contractors. The great news is we had the same contractors as the Liberal Party, so we had a very large de-escalation because they were all friends with each other and it was all fine on polling day. They did the shift from the night before all the way from 3 am across to polling day opening.

CHAIR: Ms Chaney, do you have anything on solutions for that question I put?

Ms Chaney: I don't know how viable this would be but, in terms of the AEC's role, being able to provide some guidance for local councils on constitutionality of signage would be useful and allow councils to make rules that they know are enforceable and therefore so enforce those rules.

CHAIR: I'll move to other questions. Dr Ryan.

Dr RYAN: I'll ask any of you—maybe you could just put your hand up—about your thoughts about the impending impact of electoral donation reforms.

CHAIR: Sorry, just questions on the first terms of reference, the aggressive and intimidatory behaviour. Did you have any questions on that? We'll get to electoral reform soon.

Dr RYAN: Does anyone have any thoughts about how to enforce appropriate behaviours beyond the six-metre line other than police process, police involvement?

Ms Le: I don't know if police involvement is an ideal. Police have got this, but they're already short on resources. They need to deal with crimes and issues. They can't even handle that. I think it's about calling on human decency and having the power to prevent people from going down that rabbit hole of suddenly becoming so emotional and resorting to behaviours that really—would they behave that way at home? So I think it's about putting some mechanisms in place, whereby you're not chasing a voter down and handing them a piece of paper but just giving voters the opportunity to say, 'Okay, I will go up to you and pick up your how-to-vote.' That, for

me anyway, is very effective. When people want to vote for you, they'll come up to you and take your how-to-vote.

Dr RYAN: By a show of hands, would anyone here, of the people testifying this afternoon, not agree that their volunteers are less likely to volunteer as a result of intimidatory behaviour demonstrated at pre-polls this year? Is there anyone who thinks that their volunteers had no issue with intimidatory behaviour at the pre-polls? No. For every one of you, your volunteers experienced intimidatory or aggressive behaviour at pre-poll in 2025? The record should show that everyone is nodding.

Senator David Pocock: I think the ACT was maybe a little bit of an outlier. There were maybe a couple of minor incidents but generally nothing like we saw on the news in other jurisdictions.

CHAIR: I think the ACT did—

Ms Chaney: I think it probably wasn't as bad in Curtin either.

Dr Scamps: I want to answer your question as well, Dr Ryan, about what can we do to make behaviour better at pre-poll. One thing is that having a code of conduct for people who are involved on election day as volunteers is a way of educating people on what is acceptable not acceptable, even if it's not heavily enforced. Another thing is the preauthorised ID cards for volunteers. If you're registered with the AEC as a volunteer, then you're on the hook. You're more accountable for your behaviour. I think, at the same time, supply people with a code of conduct for what it means to be a volunteer or a campaigner at a pre-poll.

I'm not sure about this as well. I hear what people are saying about the AEC's extension of their powers. I understand that. The ability to remove people who are not complying with that code of conduct—I don't know who should be doing that enforcement. But, if there's a repeat offender, they might potentially need to be removed and not be able volunteer in the future if they're a repeat offender.

CHAIR: Senator Mulholland.

Senator MULHOLLAND: On the topic of a code of conduct—that has been raised by a couple of other witnesses. I suppose the big difficulty is, perhaps, that perpetrators are the least likely to follow a code of conduct—if I can be so blunt—particularly if it's voluntary. Are there any other thoughts you have around how we address this behaviour. We were just having a bit of discussion here about why it is that the last two elections have seen this behaviour explode at polling booths. Have you got any thoughts, particularly in your experience as Independents and in contested elections, as to why that may have been and, apart from a code of conduct, how we address this?

Ms Le: Maybe more Independents—those cause the major parties to react.

Ms Steggall: We've had an increase of pre-poll. In 2019 there was a big jump of an increase of pre-poll, I believe it was quite a long period of pre-poll; 2022 was, I think, the longest, and 2025 was slightly shorter. I think there's a balance to be struck in how many days of pre-poll need to be available because I think Australians prefer the pre-poll. It is more convenient and suits their purposes, but it creates a longer period of time over which you have a concentration at fewer polling places where your most enthusiastic, or most aggressive, people can congregate, whereas on election day they tend to be more spread out. I think 2025 was an interesting pre-poll because we had a couple of public holiday days. So there were actually fewer pre-poll days than we had had in previous elections, which I thought was helpful.

Senator MULHOLLAND: One of the pieces of evidence we've heard quite consistently across witnesses is about, in particular, prepolling booths not necessarily being fit for purpose. They are not accessible and have poor car parking, and people crunch in on top of each other. We have heard some evidence from other witnesses in previous hearings that perhaps fixed terms might give the AEC a bit more capacity to know what they're dealing with, have a date in mind, and go in and engage with various venues and lock them in on a date so they're not scrambling around eight weeks out from an election trying to find a location and ending up with the scraps of locations. Is that something that perhaps might be helpful as well, from your experiences?

Senator David Pocock: Absolutely. Just on prepoll locations—I put this in my formal submission—an example here in the ACT is that the southernmost prepoll, in Tuggeranong, was directly outside the Labor member's office, so the queue was essentially along his massive sign in his window. I know that created some agitation amongst other candidates—that essentially the whole prepoll was outside his office, with so much free advertising.

Mr BURNELL: He doesn't get to pick the location. That's determined by the AEC.

Senator David Pocock: I know. This is exactly what I'm saying. I think part of it was timing.

Senator MULHOLLAND: Lack of availability.

Senator David Pocock: Lack of availability. But another thing that I think we should look at is mandating that it cannot be outside a member's office, because I just think it's unfair on other candidates.

Senator MULHOLLAND: There are some provisions, particularly in state electoral acts, on blackout zones around elections, not just for MP signage but for billboards, mobile billboards, trucks et cetera. In my personal view, it needs to be broader than just that, because the game will always change. People will innovate and drive big trucks and locate them out the front of polling booths.

Just on the fixed terms, can I get a bit of a sense, from the Independents on this roundtable, of your thoughts on a movement to this. I suppose there are two different pieces of evidence that have come to us. One is about fixing terms in the current three-year cycle, and the other is about moving to a four-year term. Can I get a sense on fixing the three-year terms as we currently have them.

Dr Haines: Can I just jump in there. I made the point earlier that I really do think we need to look at fixed terms. I personally would be supportive of an inquiry that could look at either option—a fixed date in the three-year cycle or, indeed, extending it to a four-year cycle. I think that would assist the AEC greatly. I think it would give voters more confidence, and we could have a much more orderly approach to this.

The other thing I want to add while I have the talking stick is that, when it comes to aggression on the polling booths, many of our polling booth volunteers for the AEC are just that, and, without fixed terms or the opportunity to know when the next election's going to come up, the opportunity for AEC to recruit and to train is limited. I think that our AEC volunteers and booth leaders in particular need to have the opportunity for greater training, particularly in regard to aggressive behaviour and breach of rules at polling booths.

CHAIR: Anyone else on this? No, we have other questions. Sorry. Mr Neumann, do you have any questions on this specific term of reference? I'm just wary about time.

Mr NEUMANN: Thank you. You've all given evidence about obstructive behaviour, aggressive behaviour and intimidation. In your respective electorates, did you see the Plymouth Brethren or Exclusive Brethren in Liberal Party, National Party or One Nation shirts handing out how-to-vote cards, and were they the perpetrators of this type of behaviour?

Ms Le: I've had a sea of blue and red in my electorate, but in our electorate actually the experience is a bit different. I've heard about the aggressive behaviour in other electorates, but, in our electorate, the Brethren, as you call them, were feeding everybody, including Labor. We were all eating together around lunchtime. So the aggression that was described didn't happen so much in my electorate. Of course, ours is between us and the red, rather than us and the blue, so maybe it's about who's got the seat. So maybe that's the experience. That's where it was.

Mr NEUMANN: I'm interested in the other electorates because I look around the room and most of the contests seem to be between an Independent and a Liberal Party or National Party candidate. I'm interested across the electorate. We've had plenty of evidence in this inquiry so far that people from the Exclusive Brethren or Plymouth Brethren were handing out how-to-vote cards for conservative parties en masse and that some of them were engaged in intimidating, obstructive and aggressive behaviour towards campaign workers of other political parties and Independents. I'm interested in the evidence. You've all given evidence generally, but I'm interested in the specificity of it.

Dr Scamps: I can say in Mackellar that we didn't have the Exclusive Brethren, but I do think it was targeted to particular electorates. I think Victorian electorates, potentially those of Goldstein and Kooyong, could've been targeted and also some regional ones, like Calare, where there was a contest between conservative and Independent. That's my understanding.

Ms Chaney: We had some presence in Curtin, but I would say there was not particularly threatening behaviour. But my understanding is that, in other parts of Western Australia, especially regional, where there were Independents running, the presence was bigger and more of a problem.

Dr Haines: There was no obvious presence in Indi.

Ms Boele: In Bradfield, we were swamped. There's no way to sugar-coat it. But, generally, there was the sharing of food and a few, sort of, MAGA comments and things like 'Make Australia smile again'. I'm just checking my photographs from prepoll, and, yes, they are wearing the blue team's T-shirt. You can see the small skirts that the women wore on leggings. They're quite openly members of the church. When I was talking to them, I found I was—maybe my bar on intimidation's a little bit lower and I'm a bit more tolerant, possibly, having grown up with brothers and things. But they would stand in between me and potential people who wanted to come and talk to me and make sure I didn't have a good spot to engage with people as they approached the booths.

The only other really intimidating thing was the parking of large utes on the street or in places that blocked access. But there wasn't shouting and aggression. There was nothing derogatory. It was more the physical presence, the sheer numbers. If I'm being really honest, we had 1,500 volunteers, so they could probably say the same about us. It's just that ours behaved more nicely. That's probably it. I forgot that's going in *Hansard*. There were lots of them. They were Liberal. But they also did share food.

Ms Steggall: I had one booth, which was actually in conjunction with you, Chair, the member for Bennelong, where, yes, there were definitely members there handing out for the Liberal Party. I didn't personally observe them to be aggressive. They were generally fairly young. But I know from volunteers that there were other incidents reported. The more aggressive incidents reported to me from volunteers were not specific to the Brethren.

Mr NEUMANN: Who was perpetrating this aggression and deliberate obstruction that you've given evidence of before? Who was doing that if it wasn't the Brethren in the Liberal Party T-shirts?

Ms Steggall: It was people that I believe I could identify as Liberal Party members.

Ms Boele: Yes, NSW Liberal Party members is my ID as well.

Mr NEUMANN: Could they be One Nation?

Ms Steggall: Our most problematic booth was one at Warringah mall, which is an entrance to a library. It was basically like—imagine you had volunteers in a pen, behind a fence, side by side. I believe what order people were put in was pulled out of a hat, and I had volunteers next to UAP and One Nation, where behaviour was at times erratic and challenging. Again, I would say on the record that I don't think Warringah was to the level of aggression of other areas.

Mr NEUMANN: Ms Steggall and others, you were talking about other groups that were involved, third parties. Were they involved in this aggressive behaviour? They weren't necessarily wearing blue shirts, but they were involved in handing out how-to-vote cards or wrappings, to use your expression. Were they there, engaging in this sort of behaviour, even though they were not on the ballot paper? Were they involved?

Ms Steggall: It's very hard to know who the volunteers are for. We had a number of people at booths that you don't automatically identify. The wrapping we had from third-party organisations—as Dr Scamps said, the Australians for Prosperity. There were a number of organisations. We had a lot of vandalism when it came to corflutes and banners on private property. The same spelling mistake in the vandalism of signs was then done on trucks that went around the electorate, whether it was accidental or not.

In terms of volunteers at pre-polling booths, the difficulty was when a volunteer who may have started the day as a volunteer for the Liberal Party and then put on a different T-shirt or did something different. I couldn't for the record say exactly who those volunteers were for because of moving from one to the other. Organisations like Australians for Prosperity were being led and authorised by Liberal members. Jason Falinski was the president of the New South Wales Liberal Party previously. There is an inference that it is associated with the Liberal Party.

Mr NEUMANN: So there are these third-party organisations that you can't really identify, but they're coming in, they're putting on blue shirts, they're handing out how-to-vote cards, and they're doing their wraps. They're like some sort of third-party group that's allied with one of the major political parties attacking you, but you can't work out who they are. Do you think we need some sort of legislative reform in this space of disclosure and accountability? They're like an aggressive army of people that come in and put on a coloured shirt without any degree of openness or transparency at all. You're a candidate. You're getting your feedback from your members and your volunteers, yet you can't identify who these people are. They're coming in, and they're helping, say, the Liberal Party or the One Nation party. Don't you reckon there's a need for some sort of reform in this place?

Dr Scamps: Yes.

Ms Steggall: Absolutely, especially at the wrapping of a school, where the authorisation is so tiny. A volunteer for a candidate means poor behaviour by that volunteer will very directly reflect immediately with that voter upon that candidate. Poor behaviour from a third party, where a voter is not aware of a direct link to a candidate on the ballot paper, doesn't reflect negatively on the candidate. So yes. I support there being regulation, keeping in mind we have traditionally had WWF, ACF, GetUp. There have been other organisations involved in our politics before. I'm not saying third parties are a new thing, but they don't carry the same voting consequence on a candidate as a volunteer to a candidate, per se.

Mr NEUMANN: Can I ask one last question, Jerome?

CHAIR: Yes, last one. We've got 10 minutes.

Mr NEUMANN: Senator Mulholland and I saw in my electorate of Blair third-party people disobeying the AEC's directions and then claiming that they weren't a member of any political party—they were just observers interested in the outcome of the election—and then later put on blue shirts. Did you see AEC people being intimidated, abused, irritated and accused of things? To what extent did you see any support from the AEC for their workers on the ground?

Dr Scamps: I didn't see any AEC workers being abused. I think they were very professional, from what I saw. If I may, there were a few questions that I didn't have an opportunity to respond to, and I might quickly respond to some of those. One of the questions was: who was being abusive? I've got a couple of quotes: 'Volunteers from the Libertarians were particularly aggressive'; 'The Liberals were physically aggressive. One poked my 'Sophie' T-shirt'; 'I was verbally harassed at the Avalon booth by Libertarians'; 'I was the booth captain at Beacon Hill primary. We had an incident where a former Liberal councillor/retired policeman acted aggressively to one of our volunteers'—and there's a video of that. We worked hard with other parties to have a friendly relationship, wherever I was, but it was hard work to have that friendly engagement.

I also agree with fixed terms. I think it's really important. I would like to see a four-year term, because of the short-termism, so that when a government is in power it has time to implement its plans. On the foundations for tomorrow, I very much agree with that. Also, if you can't get four-year terms then I agree with three-year terms. Not at the last election but at the one in 2022 our major prepoll booth was really inadequate. I think it was quite dangerous. We had to stand near a car park. People were nearly getting run over. There were cracks in the footpath. There was no lighting. It was a long walk in, and I was worried that an elderly person would break a hip. We were escorting them up and down so that that didn't happen. I think a fixed term would help with those facilities as well—

CHAIR: Sorry, Dr Scamps, I'm going to have to stop you there because we've only got nine minutes left—

Ms Le: Can I, just on that point—

Mr NEUMANN: Can you take on notice and think about—

CHAIR: No, sorry, I'd really like to move on. Ms Le, we're really going to run out of time—

Ms Le: It's very important that AEC connects with council, because it is the states concerned that can fix the problems with prepoll.

CHAIR: Sorry to those members who didn't get to ask a question on that. I was just chatting to Dr Ryan. I would like to give your comments on electoral donation reform and spending reform more than nine minutes—or eight minutes now—so we'll come back to that. I want to ask Senator Pocock about the expansion of parliament. Currently the territories have senators elected at every election. We've had conflicting evidence from people. We've had those who say that if the number of senators in the territories were increased then that system should remain. We've had evidence that they should mirror state Senate election cycles, where half are elected. On behalf of those who elect you, what's their preference—or do you have a preference?

Senator David Pocock: My preference, as I said, would be to legislate a ratio as close to half as possible, so that would make it six on current numbers. In talking to psephologists, they say that having three up every six years would make the most sense, in terms of having better representation of senators in the ACT.

CHAIR: In terms of a general expansion of the parliament, noting the increases in population and keeping the nexus, is that something you have an opinion on?

Senator David Pocock: I would echo the words of the member for Indi on this. I think this needs very serious consideration. The first priority for me would be the better resourcing of MPs and senators, to be able to respond to constituents and also to get across legislation.

CHAIR: Okay. Does anyone have any other questions on that one in particular, in terms of Senate representation? Do any of the participants want to expand on the issue of the size of the parliament or territory representation?

Ms Chaney: Chair, in terms of your earlier comment, did you mean you're going to set up a separate hearing to talk about the electoral reform?

CHAIR: No, I said if we weren't going to get through all of the terms of reference then we'll set another date to come back. That's likely to be one of the Fridays in 2026. The diary is full between now and the end of the year, so, yes, we will give everyone the opportunity to talk. Senator McKenzie, we have six minutes, so we'll definitely come back. I know not every person got to ask a question there. Are there any more comments on the size of the parliament? Ms Boele.

Ms Boele: I think—a little bit to the member for Indi's comment—that has quite large consequences financially and needs to be looked at. But, if we maintain what we've got, which is one of the biggest ratios anywhere in western democracies, we have to resource our job. I have 190,000 people to look after, of which 125,000 are voters—like everybody else does. We need to be resourced for that job. I have a really tight electorate compared to someone like the member for Indi.

Also, as a new person on the block here, I find it really quite strange that the Prime Minister is at his pleasure about what staffing I get, as personal staffing. To depoliticise that would also be something I would lean into.

CHAIR: I'll go back to Mr Burnell and Ms Campbell on the first terms of reference—on intimidation et cetera. I know you didn't get to ask a question. I want to give you an opportunity so we can close off on that one.

Mr BURNELL: Dr Scamps, I think you implied using a voter ID card—was that right?

Dr Scamps: That was a suggestion from our volunteers for volunteers.

Mr BURNELL: For volunteers, yes. If you have volunteers that are party aligned or candidate aligned, that's all well and good. Outside of that, how do we address that? It really goes down to the conduct of the individual candidate or party to adhere to something like a code of conduct; true? For instance, if a third party comes into that space, how do we police that, if they're not subject to—

Dr Scamps: I don't have all of the answers, sorry. It was a recommendation from the volunteers and a thought about how we increase accountability if there are volunteers from any type. Even if they are with a third party, can they be registered to a third party? If there is a third party like Australians for Prosperity, maybe people are registered in that way.

Mr BURNELL: Should the enforcement of these rules outside of the six-metre exclusion zone be at the discretion of the AEC or some third-party organisation, whether that be the AFP, an integrity unit or something like that? What are your thoughts on that?

Dr Scamps: Again, I don't have all the answers, but there is an issue where there is unseemly behaviour that occurs outside the six-metre zone. This is airing what our experiences were: there was aggressive behaviour beyond the six-metre zone. I don't have all of the answers, but one of the answers that the volunteers have come up with is registration through the AEC and for them to wear their badge with their face and their name. That is greater accountability.

Mr BURNELL: But does that not put an onus on the AEC to then police the behavioural standards outside of the six-metre zone when their primary function is to ensure the integrity of the actual vote inside the polling booth?

Dr Scamps: I'm not actually saying that it should be the AEC.

Mr BURNELL: Okay. I just wanted some clarity.

I want to follow up on a comment made by Ms Boele. You made a comment about engaging private security during the election. I've never been in a position where I've needed to have private security engaged at a polling booth. Can you please expand on what brought that about, beyond the intimidation happening in and around your home? I would like on the record that that is absolutely disgusting behaviour by any political organisation—to intimidate a candidate like that. It should not happen at all, and I am very sorry that you experienced that. But I would like to understand more about this private security scenario. I've not seen that in place in South Australia. Maybe we don't have some of the pressures that occur elsewhere across the country due to the truth in political advertising laws that we have in place. Maybe we don't have some of the pressures that occur elsewhere across the country, due to the truth-in-political-advertising laws that we have in place.

Ms Boele: I have to say I'm not deeply across the logistics of how those things happen. I have a broader team on that, so I can make sure it's part of the submission that we do in writing. But I can say that the people that made up our 1,500 volunteers and then the very active volunteers on the inside included former Liberal and former Labor people, and they brought their campaigning experience to my team. It was explained to me that this was common practice and that the other side would be doing it and, if we wanted to play an equal field for polling day, we would need to do that. It wasn't my finest moment to think that we would be spending donors' money on that, but, when you see how hard the volunteers worked to turn up and try to change Bradfield to Independent, I reluctantly agreed to it. Strangely, in the bizarre circumstances—as I mentioned, the fact was that this was the same security company where the blokes were really decent with each other—is the end it was actually a really good move, and everybody kept their turf. We turned up. There was nothing untoward on the actual polling day.

Mr BURNELL: Thank you.

CHAIR: Okay. We're at 2.30, but our participating member Senator McKenzie has come. She's indicated that she has one question to ask.

Senator McKENZIE: One question.

CHAIR: That's all I can give you, because we're pressed for time.

Senator McKENZIE: I appreciate that.

CHAIR: But we are coming back next year with an Independents roundtable.

Senator McKENZIE: Fantastic. Thank you. I've been watching from my office downstairs, and, Senator Mulholland, your line of questioning to the Greens director earlier pricked my ears, but then, when Mr Neumann came in strong, I became very concerned that the Labor Party committee members' line of questioning to the Independents would suggest that Christians legitimately participating in an election is somehow going to be construed as third-party intimidation. So I'm very concerned about the line of questioning today, and I wanted to ask the Independents—those who would like to answer—about it, because, as I understood from your responses to Mr Neumann's questioning, your experiences with this cohort of Christian Australians participating at your booths were, in the main, that, similar to everybody else, they were participating in democracy in a respectful manner.

Senator MULHOLLAND: Not that I saw.

CHAIR: I don't think that faith was the subject of the questioning in any way whatsoever, but the question's there. If anyone wants to answer it, they're more than welcome to. I think the focus of the discussion was much more on the behaviour than on the faith. That was my interpretation of it, but, if anyone wants to add to that or answer the question, feel free to put up your hand.

Senator David Pocock: As I said to the chair earlier, I think the experience in the ACT was unlike what we were hearing about in the states.

Senator McKENZIE: Thanks, Senator.

Dr Haines: I will just add that in Indi we did not have an experience of third-party campaigners on the polling booths to the extent that others have seen.

Ms Le: The same in Fowler. As I mentioned before, the issue for my electorate is the red. It wouldn't be people in blue. Obviously, it was a Labor seat, so it was people who were in red—and people who were part of supporting Labor but not identified as well. So my situation was quite different.

Senator McKENZIE: Thank you.

Senator MULHOLLAND: Chair, can I just add something. I think it is concerning to have a senator show up five minutes before the end of proceedings, having watched from her office but not had the decency to show up here, to try and cast aspersions about people.

Senator McKENZIE: You've got members of parliament participating from their offices.

Senator MULHOLLAND: Hang on; I'm talking. We all heard you speak, Senator McKenzie. I would appreciate the same respect. To show up five minutes before the end of the hearing—there are no coalition members or senators here today, and to come five minutes before the end and try and politicise proceedings, I think, is disappointing.

Senator McKENZIE: I hear your disappointment.

CHAIR: On that note, thanks for your participation. As I mentioned, we will reschedule to continue to go through the terms of reference. I think there's an important discussions to have about other issues that have been raised today, so we'll do that as soon as we have a sitting calendar for 2026. It will likely be on a Friday after a sitting week, I would say, and we might give ourselves a bit more time than 90 minutes. Thank you for your attendance today. If you've been asked to provide any additional information, would you please forward it to be secretary by Friday 21 November.

Committee adjourned at 14:34